

JANITORIAL SERVICES

TABLE OF CONTENTS

SECTION 1 – THE SCHEDULE

- SF 1449 cover sheet
- Continuation To SF-1449, RFP Number **19EC7526R0001** Prices, Block 23
- Continuation To SF-1449, RFP Number **19EC7526R0001** Schedule of Supplies/Services, Block 20 Description/Specifications/Work Statement

SECTION 2 – CONTRACT CLAUSES

- Contract Clauses
- Addendum to Contract Clauses - FAR and DOSAR Clauses not Prescribed in Part 12

SECTION 3 – SOLICITATION PROVISIONS

- Solicitation Provisions
- Addendum to Solicitation Provisions - FAR and DOSAR Provisions not Prescribed in Part 12

SECTION 4 – EVALUATION FACTORS

- Evaluation Factors
- Addendum to Evaluation Factors - FAR and DOSAR Provisions not Prescribed in Part 12

SECTION 5 – REPRESENTATIONS AND CERTIFICATIONS

- Offeror Representations and Certifications
- Addendum to Offeror Representations and Certifications - FAR and DOSAR Provisions not Prescribed in Part 12

[illegible]

19. ITEM NUMBER	20. SCHEDULE OF SUPPLIES/SERVICES	21. QUANTITY	22. UNIT	23. UNIT PRICE	24. AMOUNT

32a. QUANTITY IN COLUMN 21 HAS BEEN

☐ RECEIVED

☐ INSPECTED

☐ ACCEPTED, AND CONFORMS TO THE CONTRACT, EXCEPT AS NOTED: _____

32b. SIGNATURE OF AUTHORIZED GOVERNMENT REPRESENTATIVE

32c. DATE

32d. PRINTED NAME AND TITLE OF AUTHORIZED GOVERNMENT REPRESENTATIVE

Matthew Madden
Contracting Officer

32e. MAILING ADDRESS OF AUTHORIZED GOVERNMENT REPRESENTATIVE

American Embassy Quito
Avigiras E12-170 y Eloy Alfaro,
Quito - Ecuador

32f. TELEPHONE NUMBER OF AUTHORIZED GOVERNMENT REPRESENTATIVE

+593-2-3985000

32g. EMAIL OF AUTHORIZED GOVERNMENT REPRESENTATIVE

MaddenMD@state.gov

33. SHIP NUMBER

34. VOUCHER NUMBER

35. AMOUNT VERIFIED
CORRECT FOR

36. PAYMENT

37. CHECK NUMBER

☐ PARTIAL ☐ FINAL

☐ COMPLETE ☐ PARTIAL ☐ FINAL

STOCK RECORD (S/R)

38. S/R ACCOUNT NUMBER

39. S/R VOUCHER NUMBER

40. PAID BY

41a. I CERTIFY THIS ACCOUNT IS CORRECT AND PROPER FOR PAYMENT

41b. SIGNATURE AND TITLE OF CERTIFYING OFFICER

41c. DATE

42a. RECEIVED BY *(Print)*

42b. RECEIVED AT *(Location)*

42c. DATE RECEIVED *(MM/DD/YYYY)*

42d. TOTAL CONTAINERS

SECTION 1 - THE SCHEDULE
CONTINUATION TO SF-1449,
RFP NUMBER **19EC7526R0001**
PRICES, BLOCK 23

JAMES ZADROGA 9/11 VICTIMS HEALTH AND COMPENSATION ACT OF
2010 NOTICE: UNLESS A WAIVER OR EXCEPTION APPLIES, PAYMENTS
SUBSEQUENT TO THIS PROCUREMENT ARE SUBJECT TO AN EXCISE
TAX OF 2% PERSUANT TO 26 U.S.C. 5000C.

1. PRICES AND PERIOD OF PERFORMANCE

The Contractor shall perform janitorial work, including furnishing all labor, material, equipment, and services, for the U.S. Embassy in Quito, Ecuador. The price listed below shall include all labor, materials, insurance (see FAR 52.228-4 and 52.228-5), overhead, and profit.

The Government will pay the Contractor the firm-fixed price per month for standard routine services, firm-fixed price per year for Chancery building windows cleaning, and a firm-fixed rate per square meter for any temporary additional services that have been satisfactorily performed.

Not earlier than acceptable insurance certificates and RSO clearance can the Contractor can begin work.

Because Temporary/Additional Services are based on indefinite delivery/indefinite quantity the minimum and maximum amounts are defined below:

Minimum: The Government shall place orders totaling a minimum of 1 square meter. This reflects the contract minimum for the base year and each option period.

Maximum: The amount of all orders shall not exceed 100000 square meters. This reflects the contract maximum for the base year and each option period for temporary/additional services.

The contract period of performance begins on the effective date of the award. The initial period of performance includes any transition period authorized under the contract.

1.1 VALUE ADDED TAX

VALUE ADDED TAX. Value Added Tax (VAT) is not included in the CLIN rates. Instead, it will be priced as a separate Line Item in the contract and on Invoices. Local law dictates the portion of the contract price that is subject to VAT; this percentage is multiplied only against that portion. It is reflected for each performance period.

Local law determines that only companies registered as local business in Ecuador are authorized to charge VAT to their local invoices, companies that do not fulfill that registration cannot charge VAT to their invoices.

1.2 Offers and Payment in U.S. Dollars.

Local currency is the U.S. Dollars

1.3 PRICES (*Reference the table at Section 3.0 Locations for Janitorial Services*)

1.1. CLIN 0001 Base Year Prices (Twelve Months)				
NAICS Code: 561720 – Janitorial Services				
SubCLIN A. Standard Routine Services. The firm fixed price for Base Year of the contract is:				
Price per Month	VAT Tax (15%)	Quantity of Months	Price per Year without VAT 15%	Price per Year Includes 15% VAT Tax
US\$	US\$	12	US\$	US\$
SubCLIN B. Chancery building windows cleaning. The firm fixed price for Base Year of the contract is:				
Price per service	VAT Tax (15%)	Quantity of services	Price per Year without VAT 15%	Price per Year Includes 15% VAT Tax
US\$	US\$	1	US\$	US\$
SubCLIN C. Management and Safety. The firm fixed price for Base Year of the contract is:				
Price per service	VAT Tax (15%)	Quantity of services	Price per Year without VAT 15%	Price per Year Includes 15% VAT Tax
US\$	US\$	1	US\$	US\$
SubCLIN D. Temporary Additional Services. The unit price (firm-fixed-price) is:				
Additional Standard Cleaning (Price per square meter)	Vat Tax (15%)	Estimated number of Square Meters per year	Price per Year without VAT 15%	Total Additional Standard Cleaning Not to Exceed 5,000 square meters - Includes 15% VAT Tax
US\$	US\$	5,000.00	US\$	US\$
SubCLIN E. <u>Insurances and DBA</u>. The firm fixed price for Base Year of the contract is:				
Price per service	VAT Tax (15%)	Quantity of services	Price per Year without VAT 15%	Price per Year Includes 15% VAT Tax
US\$	US\$	1	US\$	US\$
Base Year Total (CLIN 0001) = A+B+C+D+E			US\$	US\$

1.2. CLIN 1001 Option Year One Prices (Option Term: Twelve Months)				
NAICS Code: 561720 – Janitorial Services				
SubCLIN A. Standard Routine Services. The firm fixed price for Option Year One of the contract is:				
Price per Month	VAT Tax (15%)	Quantity of Months	Price per Year without VAT 15%	Price per Year Includes 15% VAT Tax
US\$	US\$	12	US\$	US\$
SubCLIN B. Chancery building windows cleaning. The firm fixed price for Option Year One of the contract is:				
Price per service	VAT Tax (15%)	Quantity of services	Price per Year without VAT 15%	Price per Year Includes 15% VAT Tax

US\$	US\$	1	US\$	US\$
SubCLIN C. Management and Safety. The firm fixed price for Option Year One of the contract is:				
Price per service	VAT Tax (15%)	Quantity of services	Price per Year without VAT 15%	Price per Year Includes 15% VAT Tax
US\$	US\$	1	US\$	US\$
SubCLIN D. Temporary Additional Services. The unit price (firm-fixed-price) is:				
Additional Standard Cleaning (Price per square meter)	Vat Tax (15%)	Estimated number of Square Meters per year	Price per Year without VAT 15%	Total Additional Standard Cleaning Not to Exceed 5,000 square meters - Includes 15% VAT Tax
US\$	US\$	5,000.00	US\$	US\$
SubCLIN E. Insurances and DBA. The firm fixed price for Option Year One of the contract is:				
Price per service	VAT Tax (15%)	Quantity of services	Price per Year without VAT 15%	Price per Year Includes 15% VAT Tax
US\$	US\$	1	US\$	US\$
Option Year One Total (CLIN 1001) = A+B+C+D+E			US\$	US\$

1.3. CLIN 2001 Option Year Two Prices (Option Term: Twelve Months)				
NAICS Code: 561720 – Janitorial Services				
SubCLIN A. Standard Routine Services. The firm fixed price for Option Year Two of the contract is:				
Price per Year Includes 15% VAT Tax	VAT Tax (15%)	Quantity of Months	Price per Year without VAT 15%	Price per Year Includes 15% VAT Tax
US\$	US\$	12	US\$	US\$
SubCLIN B. Chancery building windows cleaning. The firm fixed price for Option Year Two of the contract is:				
Price per Year Includes 15% VAT Tax	VAT Tax (15%)	Quantity of services	Price per Year without VAT 15%	Price per Year Includes 15% VAT Tax
US\$	US\$	1	US\$	US\$
SubCLIN C. Management and Safety. The firm fixed price for Option Year Two of the contract is:				
Price per Year Includes 15% VAT Tax	VAT Tax (15%)	Quantity of services	Price per Year without VAT 15%	Price per Year Includes 15% VAT Tax
US\$	US\$	1	US\$	US\$
SubCLIN D. Temporary Additional Services. The unit price (firm-fixed-price) is:				

Additional Standard Cleaning (Price per square meter)	Vat Tax (15%)	Estimated number of Square Meters per year	Price per Year without VAT 15%	Total Additional Standard Cleaning Not to Exceed 5,000 square meters- Includes 15% VAT Tax
US\$	US\$	5,000.00	US\$	US\$
SubCLIN E. Insurances and DBA. The firm fixed price for Option Year Two of the contract is:				
Price per Year Includes 15% VAT Tax	VAT Tax (15%)	Quantity of services	Price per Year without VAT 15%	Price per Year Includes 15% VAT Tax
US\$	US\$	1	US\$	US\$
Option Year Two Total (CLIN 2001) = A+B+C+D+E			US\$	US\$

1.4. CLIN 3001 Option Year Three Prices (Option Term: Twelve Months)				
NAICS Code: 561720 – Janitorial Services				
SubCLIN A. Standard Routine Services. The firm fixed price for Option Year Three of the contract is:				
Price per Month	VAT Tax (15%)	Quantity of Months	Price per Year without VAT 15%	Price per Year Includes 15% VAT Tax
US\$	US\$	12	US\$	US\$
SubCLIN B. Chancery building windows cleaning. The firm fixed price for Option Year Three of the contract is:				
Price per service	VAT Tax (15%)	Quantity of services	Price per Year without VAT 15%	Price per Year Includes 15% VAT Tax
US\$	US\$	1	US\$	US\$
SubCLIN C. Management and Safety. The firm fixed price for Option Year Three of the contract is:				
Price per service	VAT Tax (15%)	Quantity of services	Price per Year without VAT 15%	Price per Year Includes 15% VAT Tax
US\$	US\$	1	US\$	US\$
SubCLIN D. Temporary Additional Services. The unit price (firm-fixed-price) is:				
Additional Standard Cleaning (Price per square meter)	Vat Tax (15%)	Estimated number of Square Meters per year	Price per Year without VAT 15%	Total Additional Standard Cleaning Not to Exceed 5,000 square meters - Includes 15% VAT Tax
US\$	US\$	5,000.00	US\$	US\$
SubCLIN E. Insurances and DBA. The firm fixed price for Option Year Three of the contract is:				

Price per service	VAT Tax (15%)	Quantity of services	Price per Year without VAT 15%	Price per Year Includes 15% VAT Tax
US\$	US\$	1	US\$	US\$
Option Year Three Total (CLIN 3001) = A+B+C+D+E			US\$	US\$

1.5. CLIN 4001 Option Year Four Prices (Option Term: Twelve Months) NAICS Code: 561720 – Janitorial Services				
SubCLIN A. Standard Routine Services. The firm fixed price for Option Year Four of the contract is:				
Price per Month	VAT Tax (15%)	Quantity of Months	Price per Year without VAT 15%	Price per Year Includes 15% VAT Tax
US\$	US\$	12	US\$	US\$
SubCLIN B. Chancery building windows cleaning. The firm fixed price for Option Year Four of the contract is:				
Price per service	VAT Tax (15%)	Quantity of services	Price per Year without VAT 15%	Price per Year Includes 15% VAT Tax
US\$	US\$	1	US\$	US\$
SubCLIN C. Management and Safety. The firm fixed price for Option Year Four of the contract is:				
Price per service	VAT Tax (15%)	Quantity of services	Price per Year without VAT 15%	Price per Year Includes 15% VAT Tax
US\$	US\$	1	US\$	US\$
SubCLIN D. Temporary Additional Services. The unit price (firm-fixed-price) is:				
Additional Standard Cleaning (Price per square meter)	Vat Tax (15%)	Estimated number of Square Meters per year	Price per Year without VAT 15%	Total Additional Standard Cleaning Not to Exceed 5,000 square meters - Includes 15% VAT Tax
US\$	US\$	5,000.00	US\$	US\$
SubCLIN E. Insurances and DBA. The firm fixed price for Option Year Four of the contract is:				
Price per service	VAT Tax (15%)	Quantity of services	Price per Year without VAT 15%	Price per Year Includes 15% VAT Tax
US\$	US\$	1	US\$	US\$
Option Year Four Total (CLIN 4001) = A+B+C+D+E			US\$	US\$

OFFERORS: Offerors are encouraged to complete the following pricing table for price evaluation purposes and FAR Clause 52.217-8 Option to Extend Services for 6 months. The

cost/price information provided will be used to evaluate the total price for all options (52.217-5) and the total price for the basic requirement ONLY. The price offered in the table below will not be included in the total contract award amount; however, if you choose not to provide any cost/price information for each Line Item below, your Price Proposal will be considered incomplete, labeled as failure to follow instructions, and no further consideration will be given

1.6. CLIN 5001 52.217-8 Option to Extend Services (6 Months) NAICS Code: 561720 – Janitorial Services				
SubCLIN A. Standard Routine Services. The firm fixed price for 52.217-8 Option to Extend Services (6 Months) of the contract is:				
Price per Month	VAT Tax (15%)	Quantity of Months	Price per 6 months without VAT 15%	Price per 6 months Includes 15% VAT Tax
US\$	US\$	6	US\$	US\$
SubCLIN B. Chancery building windows cleaning. The firm fixed price for 52.217-8 Option to Extend Services (6 Months) of the contract is:				
Price per Month	VAT Tax (15%)	Quantity of Months	Price per 6 months without VAT 15%	Price per 6 months Includes 15% VAT Tax
US\$	US\$	1	US\$	US\$
SubCLIN C. Management and Safety. The firm fixed price for 52.217-8 Option to Extend Services (6 Months) of the contract is:				
Price per Month	VAT Tax (15%)	Quantity of Months	Price per 6 months without VAT 15%	Price per 6 months Includes 15% VAT Tax
US\$	US\$	1	US\$	US\$
SubCLIN D. Temporary Additional Services. The unit price (firm-fixed-price) is:				
Additional Standard Cleaning (Price per square meter)	Vat Tax (15%)	Estimated number of Square Meters per six months	Price per 6 months without VAT 15%	Total Additional Standard Cleaning Not to Exceed 2,500 square meters - Includes 15% VAT Tax
US\$	US\$	2,500.00	US\$	US\$
SubCLIN E. Insurances and DBA. The firm fixed price for 52.217-8 Option to Extend Services (6 Months) of the contract is:				
Price per Month	VAT Tax (15%)	Quantity of Months	Price per 6 months without VAT 15%	Price per 6 months Includes 15% VAT Tax

US\$	US\$	1	US\$	US\$
52.217-8 Option to Extend Services (Six Months) (CLIN 5001) = A+B+C+D+E			US\$	US\$

Grand Total of Base and All Options NAICS Code: 561720 – Janitorial Services		
Periods	Price per Year without VAT 15%	Price per Year Includes 15% VAT Tax
Base Year Total (CLIN 0001)	US\$	US\$
Option Year One Total (CLIN 1001)	US\$	US\$
Option Year Two Total (CLIN 2001)	US\$	US\$
Option Year Three Total (CLIN 3001)	US\$	US\$
Option Year Four Total (CLIN 4001)	US\$	US\$
52.217-8 Option to Extend Services (Six Months) (CLIN 5001)	US\$	US\$
Grand Total of Base and All Options	US\$	US\$

CONTINUATION TO SF-1449,
RFP NUMBER 19EC7526R0001
SCHEDULE OF SUPPLIES/SERVICES, BLOCK 20
DESCRIPTION/SPECIFICATIONS/WORK STATEMENT

1. SCOPE OF WORK

The purpose of this firm-fixed price contract is to obtain janitorial supplies and services for real properties owned or managed by the U.S. Embassy Quito. The Contractor shall perform janitorial services in all designated spaces including, but not limited to hallways, offices, restrooms, work areas, entrance ways, lobbies, storage areas, elevators, and stairways. The contract will be for a one-year period from the date of the contract award, with (4) four one-year option periods, at the discretion of the Government.

The Contractor shall furnish all managerial, administrative, and direct labor personnel that are necessary to accomplish the work in this contract. The contractor shall provide no fewer than 16 employees (including one supervisor) for eight hours per working day to meet contract requirements. The supervisor must have no other responsibilities, such as cleaning. Contractor employees shall be on site only for contractual duties and not for other business purposes.

1.1 General Instructions

The Contractor shall prepare general instructions for the work force. The Contractor shall provide drafts to the Contracting Officer's Representative (COR) for review within thirty days after contract award. The Contracting Officer's Representative must approve these general instructions before issuance. Contractor general instructions shall include detailed procedures and supplies data sheets for regular and enhanced cleaning as well as for Temporary Services.

Operating procedures shall comply with regulations and recommendations of U.S. Centers for Disease Control (CDCs), US Army Corp of Engineers Safety and Health Regulations, and Occupational Safety and Health Administration (OSHA) concerning cleaning and disinfection requirements, Safety and Health, Personal Protective Equipment (PPE) and special training of personnel. Supplies shall comply with the U.S. EPA standards and Green Products.

1.2 DUTIES AND RESPONSIBILITIES

1.2.1 Certain areas listed in Section 3.0 require an escort and can only be entered during scheduled times. The General Instructions shall emphasize security requirements so that accidental security violations do not occur and will include the definition of a security violation and resulting consequences for repeated violations.

1.2.2. Contractor shall schedule routine cleaning requirements to ensure that these are done in the order and time frame that are most efficient and have the least impact on normal operations. They are to be performed daily.

1.2.3. Contractor shall schedule periodic cleaning requirements so that it causes minimal disruption to the normal operation of the facility. The COR shall determine the schedules presented which meet the needs of the individual facility.

1.2.4. Temporary Additional Services are services that are defined as Standard Services but are required at times other than the normal workday or requiring additional personnel. These services shall support cleaning services, special events, and/or unscheduled requirements at the Embassy or other properties of the US Government: The Chief of Mission Residence (CMR) in la Floresta and the Deputy Chief of Mission Residence (DCMR) in Campo Alegre. The Temporary Additional Services do not include cleaning supplies e.g. toilet paper, paper towels, and hand soap. The Contractor shall provide these services in addition to the scheduled services specified in this contract. The COR shall order these services as needed basis. This work shall be performed by Contractor trained employees and shall not be subcontracted. The COR may require the Contractor to provide temporary additional services with 24-hour advance notice.

The Contractor shall include in its next regular invoice details of the temporary additional services and, if applicable, materials, provided and requested under temporary additional services. The Contractor shall also include a copy of the COR's written confirmation for the temporary additional services.

1.3 TYPE OF SERVICES

Standard Routine Services shall include the following work:

1.3.1 Daily Cleaning Requirements shall consist of:

1.3.1.1 Sweeping all floor areas including damp mopping of areas such as tile, linoleum, marble floors, staircases, and public areas. Floors shall be free of dust, mud, sand, footprints, liquid spills, and other debris. Chairs, trash receptacles, and easily moveable items shall be tilted or moved to clean underneath. The frequency may be higher than once per day when it is rainy. Wet floors need to be mopped as soon as possible to prevent fall hazards. When completed, the floor and halls shall have a uniform appearance with no streaks, smears, swirl marks, detergent residue, or any evidence of remaining dirt or standing water. All necessary safety precautions will be taken by placing appropriate caution signs during cleaning and wet operations.

1.3.1.2 Dusting and cleaning all furniture including desks, chairs, credenzas, computer tables, telephone tables, bookshelves with or without glass doors, coat racks, umbrella stands, pictures, maps, telephones, computers and CRT screens, lamps and other common things found in an office environment. All furniture shall be free of dust, dirt, and sticky surfaces and areas.

1.3.1.3 Vacuuming all clean rugs and carpets, runners, and carpet protectors so that they are free from dust, dirt, mud, etc. When completed, the area shall be free of all litter, lint, loose soil, and debris. Any chairs, trash receptacles, and easily moveable items shall be moved to vacuum underneath and then replaced in the original position. Spot cleaning of carpets in areas of doorways and other high traffic areas must be performed routinely.

1.3.1.4 Thorough cleaning of toilets, bathrooms, mirrors, hand wash stations, and shower facilities, using suitable non-abrasive cleaners and disinfectants. All surfaces shall be free of grime, soap scum, mold, and smudges. The Contractor shall refill paper towels, toilet paper, soap dispenser, hand sanitizers, and trash bags in all bathrooms. The Contractor shall check those areas used by personnel visiting the chancery several times daily to ensure that the facilities are always clean and neat. The Contractor is required to supply enough male and female employees, so that same gender workers clean the men and women toilets and bathrooms.

1.3.1.5 Emptying all wastepaper baskets, ashtrays and washing or wiping them clean with a damp cloth, replacing plastic wastepaper basket linings and returning items where they were located.

1.3.1.6 Cleaning of glasses, cups, and coffee services in conference facilities and in the Ambassador's office area. The Contractor shall clean the items in hot soapy water and rinse, dry and polish so that a presentable appearance is maintained.

1.3.1.7 Removing any grease marks or fingerprints from walls, doors, door frames, radiators, windows and window frames, glass desk protectors, reception booths and partitions.

1.3.1.8 Removing trash to designated area as directed by the COR and keeping trash area in a reasonably clean condition.

1.3.1.9 Sweeping debris from walkways and driveways and hose cleaning them during appropriate climatic and water use conditions.

1.3.1.10 The Contractor shall frequently check areas used by Embassy visitors several times daily to ensure that the facilities are maintained clean and neat.

The guidance is for cleaning with usual cleaning agents and disinfectants.

1.3.2 Periodic Cleaning Requirements shall consist of:

1.3.2.1 Polishing all stainless-steel surfaces including door and window handles, plaques.

1.3.2.2 Dusting tops of tall furniture, tops of picture frames and areas not covered in daily dusting.

1.3.2.3 Spot cleaning baseboards and walls.

1.3.2.4 Spot waxing and polishing floors as needed.

1.3.2.5 Shampooing (small area spot clean as needed) carpets.

1.3.2.6 Dusting windowsills and blinds.

1.3.2.7 Cleaning shutters as required.

1.3.2.8 Sweeping and washing terraces and balconies to remove all accumulated dirt and debris.

1.3.2.9 Contractor shall move, separate and prepare trashed material for the recycling process.

1.3.2.10 Facilitate outside contractor collection of trash as needed.

1.3.2.11 Contractor will also be responsible to remove, disinfect, fill and replace drinking water bottles, clean foot mats, sanitize and refill gel dispensing stations "as-needed."

1.3.3 Monthly Cleaning Requirements shall consist of:

1.3.3.1 Deep cleaning and grease built-up removal of embassy kitchenettes, pavilion, and main cafeteria areas including floors, surfaces, and appliances. Cafeteria deep cleaning shall be

performed after normal working hours. Contractor shall use suitable non-abrasive cleaners and disinfectants, and specific products for stainless-steel surfaces.

1.3.3.2 Wiping window blinds with a damp cloth to ensure that all smudges are removed.

1.3.3.3 Cleaning all buildings ground floor internal and external side of window glass and sills of smudges and accumulated dirt including the first-floor atrium windows. Contract safety requirements must be followed.

1.3.3.4 Deleted.

1.3.3.5 Moving all furniture and vacuuming or polishing the floor under the furniture as appropriate.

1.3.3.6 Shampooing the entire surface of carpets in the high traffic areas. Carpets shall be shampooed after normal working hours.

1.3.3.7 Cleaning compound buildings roofs. Sweeping debris from surfaces and drains, and hose clean roof surfaces.

1.3.4 Quarterly Cleaning Requirements shall consist of:

1.3.4.1 Removing, washing and replacing window blinds.

1.3.4.2 Shampooing the entire surface of carpets in the high traffic areas. Carpets shall be shampooed after normal working hours.

1.3.4.3 Cleaning and sanitizing the trash holding area.

1.3.4.4 Dusting and wiping light fixtures. When completed, the light fixtures shall be free from bugs, dirt, grime, dust, and marks.

1.3.4.5 Deep clean and pressure wash cafeteria floor and wall surfaces. This task shall be performed after normal working hours.

1.3.4.6 Pavilion glass roof cleaning. The glass shall be free of smudges, dirt, or streaks on the surfaces. The contractor shall comply with all Embassy safety standards as outlined by the POSHO or the Assistant/POSHO. Prior to the cleaning the contractor must submit an AHA for POSHO review and approval.

1.3.5 Semi-Annual Cleaning Requirements shall consist of:

1.3.5.1 Stripping wax coats, spot checking sealer coats, and completely reapplying wax coats.

1.3.5.2 Shampooing carpets in all areas.

1.3.5.3 Cleaning all light fixtures using appropriate methods to restore the original luster to the fixtures. This will include ensuring that all crystal reflectors are individually washed.

1.3.6 Annual Cleaning Requirements shall consist of:

1.3.6.1 Washing the external sides of the windows, sun shades, and louvers including the external and internal side of atrium windows. The windows shall be free of smudges, dirt, or streaks on the surfaces. The contractor will comply with all Embassy safety standards as outlined by the POSHO or the Assistant/POSHO. Scaffolding and all equipment required are to be supplied by the contractor. Prior to the installation and use of scaffolding or elevated height equipment, the contractor must submit an AHA for POSHO review and approval..

1.3.6.2 Stripping wax coats and seal coats to the bare floor surface; cleaning the bare surface, and reapplying a seal coat.

1.3.6.3 Cleaning gutters and down spouts of all collected debris.

2.0 MANAGEMENT AND SUPERVISION

2.1 The Contractor shall designate a representative who shall be responsible for on-site supervision of the Contractor's workforce at all times. This supervisor shall be the focal point for the Contractor and shall be the point of contact with U.S. Government personnel. The supervisor shall have English and Spanish language skills 4/5 to be able to communicate with members of the U.S. Government staff. The supervisor shall have supervision as his or her sole function.

2.2 The Contractor shall maintain schedules. The schedules shall take into consideration the hours that the staff can effectively perform their services without placing a burden on the security personnel of the Post. For those items other than routine daily services, the Contractor shall provide the COR with a detailed plan as to the personnel to be used and the time frame to perform the service.

2.3 The Contractor shall be responsible for quality control and is to submit a Contractor Quality Control and Management Plan to that end. The Plan shall address how the Contractor will perform inspection visits at the work site on a regular and on an unannounced (to contractor workforce) basis. Inspections shall be tailored to the requirements on contract and how each inspection will ensure the work site is at an acceptable quality level dictated by the COR's Quality Assurance and Surveillance Plan throughout the term of the contract. The Contractor shall coordinate all visits with the COR.

2.4 The contractor shall have backup employees to provide the same level of service during periods of regular workforce annual or sick leaves.

2.5 The contractor shall continuously train its crew in occupational safety and health matters, and the latest cleaning technics and products updates. At least one 2-hours training per month in safety, health and occupational including but not limited to hazardous material management and handling, ergonomics, work at heights, personal protecting equipment, risk identification, and one 2-hours training per month in applicable technics and products updates shall be provided by the contractor. Trainers shall be knowledgeable and experienced in the subject and approved by the

COR in consultation with the POSHO. Training sessions shall be provided in other than working hours not to affect the cleaning activities.

2.6 The contractor shall assign (among the required personnel in paragraph 1) four people to clean the Chancery Health Unit. That personnel will be the only authorized crew to clean the Health Unit. Embassy will provide the vaccine immunization to the assigned personnel.

3.0 LOCATIONS FOR JANITORIAL SERVICES

All standard routine services are to be delivered on regular Embassy working days.

Updated area distribution is as follows:

LOCATIONS FOR JANITORIAL SERVICES			
All standard routine services are to be delivered on regular Embassy workdays.			
Location	Estimated Area (m2)	Description	Security Escort
CHANCERY BUILDING			
5th floor South	323	1 Mechanical room 1 Electrical room Roof Areas	Yes
4th floor North	890	2 Restrooms 1 Mechanical room 1 Hallway 2 Stairways	No
4th floor South	90	1 Restroom 1 Hallway	Yes
3rd floor North	1,690	2 Restrooms 1 Electrical room 1 Telecom Room 1 System Room 1 Work room 1 Kitchenette 4 Conference rooms 2 Closets 1 Janitor closet 2 Stairways 15 Private offices 76 Workstations	No
3rd floor South	895	1 bathroom other spaces	Yes

2nd floor North	1,760	2 Restrooms 1 Electrical room 1 Telecom Room 3 Work rooms 1 Systems room 1 Kitchenette 3 Conference rooms 2 Closets 1 Janitor closet 3 Storage rooms 2 Stairways 13 Private offices 72 Workstations Hallways	No
2nd floor South	647	1 kitchenette 2 electrical rooms general offices	Yes
1st floor	3,150	7 Restrooms 2 Electrical room 3 Telecom Room 2 Work rooms 1 Systems room 1 Mechanical room 1 Cafeteria 3 Kitchenettes 1 Conference room 1 Atrium area 1 Lobby 1 Library 1 Janitor closet 6 Storage rooms 3 Stairways 2 Elevators 13 Private offices 48 Workstations Hallways	No
TOTAL CHANCERY BUILDING AREAS (m2):	9,445		

GSO ANNEX BUILDING	1,350	2 Restrooms with showers 5 Trades shops 4 Storage Rooms 1 Mechanical Rooms 1 Lockers room 1 Commissary 1 Mail facilities 1 Motor Pool 1 Gym 5 Private offices 10 Workstations Hallways Roof	No
WAREHOUSE BUILDING	1,560	1 Restroom 1 Mechanical Rooms Hallways Roof	No
CAC BUILDINGS (3)	938	3 Restrooms Roof	No
UTILITY BUILDING	640	Water, Generators, Electrical rooms	No
TOTAL ALL BUILDING AREAS (m2):	13,933		
COMPOUND EXTERIOR	17,680	2 Parking lots pavement areas Roadways Exterior Walkways Building canopies and entrance Patios 1 Tennis court 1 Basketball court 1 Mail Container 1 Pavilion including BBQ area countertop, equipment and sink. 3 Hand wash stations with two sinks, paper towel dispenser and soap dispenser. (Excluding green areas)	No

CMR GUARD BUILDING (La Floresta)	150	2 Restrooms 1 Break room	No
GRAND TOTAL ALL AREAS (m2)	31,763		

ROOF AREAS:

Location	Estimated Area (m2)	Escort
TOTAL CHANCERY BUILDING ROOF	3200	Yes
GSO ANNEX BUILDING ROOF	1,250	No
WAREHOUSE BUILDING ROOF	1420	No
CAC BUILDINGS ROOF	765	No
UTILITY BUILDING ROOF	770	No
TOTAL ALL ROOF AREAS (m2):	7,405	

4.0 PERSONNEL

4.1 General.

The Contractor shall maintain discipline at the site and shall take all reasonable precautions to prevent any unlawful, riotous or disorderly conduct by Contractor employees at the site. The Contractor shall preserve peace and protect persons and property on site. The Government reserves the right to direct the Contractor to remove an employee from the worksite for failure to comply with the standards of conduct. The Contractor shall immediately replace such an employee to maintain continuity of services at no additional costs to the Government.

4.2 Standard of Conduct.

Uniforms and Personal Equipment. The Contractor's employees shall wear clean, neat and complete uniforms when on duty. All employees shall wear uniforms approved by the Contracting Officer's Representative (COR). Personal Protective Equipment (PPE) shall comply with 1.4.6.1, CDCs and OSHA requirements. For uniform contract requirement refer to Attachment 2 - Contractor Furnished Material.

4.2.1 Neglect of duties shall not be condoned. The Contractor shall enforce no sleeping while on duty, unreasonable delays or failures to carry out assigned tasks, conducting personal affairs during duty hours and refusing to render assistance or cooperate in upholding the integrity of the worksite security.

4.2.2 Disorderly conduct, use of abusive or offensive language, quarreling, intimidation by words, actions, or fighting shall not be condoned. Also included is participation in disruptive activities, which interfere with normal and efficient Government operations.

4.2.3 Intoxicants and Narcotics. The Contractor shall not allow its employees while on duty to possess, sell, consume, or be under the influence of intoxicants, drugs or substances that produce similar effects.

4.2.4. Criminal Actions. Contractor employees may be subject to criminal actions as allowed by law in certain circumstances. These include but are not limited to the following actions:

4.2.4.1 Falsification or unlawful concealment, removal, mutilation, or destruction of any official documents or records or concealment of material facts by willful omission from official documents or records.

4.2.4.2 Unauthorized use of Government property, theft, vandalism, or immoral conduct.

4.2.4.3 Unethical or improper use of official authority or credentials; security violations; or, organizing or participating in gambling in any form.

4.2.5 Key Control. The Contractor shall receive, secure, and account for any keys issued for access to buildings, offices, equipment, gates, etc., for the purposes of this contract. The Contractor shall not duplicate keys without the COR's approval. Where it is determined that the Contractor or its agents have duplicated a key without permission of the COR, the Contractor shall remove the individual(s) responsible from this contract. If the Contractor has lost any such keys, the Contractor shall immediately notify the COR. In either event, the Contractor shall reimburse the Government for the cost of rekeying that portion of the system or replacing the lock entirely.

4.2.6 The Contractor personnel must be escorted by Facility Management personnel in restricted areas of the building. Contractor personnel is prohibited to operate, clean or modify any building equipment (generators, pumps, etc.).

4.3 Notice to the Government of Labor Disputes

The Contractor shall inform the COR of any actual or potential labor dispute that is delaying or threatening to delay the timely performance of this contract.

4.4 Personnel Security

4.4.1 After award of the contract, the Contractor shall provide the following list of data on each employee who will be working under the contract. The Contractor shall include a list of workers and supervisors assigned to this project. The Government will run background checks on these individuals. It is anticipated that security checks will take **45** days to perform. For each individual the list shall include:

Full Name
Place and Date of Birth
Current Address
Current Phone Number
Nationality
Identification number
Police Record

All Contractor employees are required to submit the Regional Security Office Name Check form as shown Attachment 3.

The Government shall issue identity cards to Contractor personnel, after they are approved. Contractor personnel shall display identity card(s) on the uniform at all times while providing services under this contract. These identity cards are the property of the US Government. The Contractor is responsible for their return at the end of the contract, when an employee leaves Contractor service, or at the request of the Government. The Government reserves the right to deny access to U.S.-owned and U.S.-operated facilities to any individual.

5.0 MATERIALS AND EQUIPMENT

5.1 The Contractor shall provide all necessary janitorial supplies and equipment, including vacuum cleaners, carpet washers, carpet dryers, floor polishers, carts, mops, brooms, dust rags, detergents, wax, disinfectants, cleaners, sanitizer gel and all other cleaning products etc. to perform the work identified in this contract. The contractor shall provide also all expendable supplies for bathrooms including toilet paper, soap, paper towels, etc. soap and towels for kitchenettes and gel to refill sanitizers stations throughout the compound.

5.2 Materials and products under 5.0 shall comply with the U.S. EPA standards and Green Products standards and shall be approved by the COR. Copies of SDS's and data sheets for all products shall be submitted for approval by the COR. Contractor shall keep a SDS book to be readily available in case of emergencies in all rooms that have hazardous materials. Contractor shall maintain and update a list of all approved products.

5.3 Contractor should take the list shown under Attachment 2 – Contractor Furnished Material, only as reference for cleaning products and equipment. It is not the intent of 5.3 and attachment 2 to request specific brands and models or amounts of equipment and products. The contractor shall determine the specification and amount of products and equipment to effectively achieve the objective of this service contract SOW.

6.0 GOVERNMENT FURNISHED PROPERTY/EQUIPMENT

No Government supplies or equipment will be provided under this contract.

7.0 INSURANCE

7.1 *Amount of Insurance The Contractor, at its own expense, shall provide and maintain during the entire term of the contract and have appropriate levels of insurance coverage that is legally required for this type of work being performed. The Contractor shall carry the following minimum insurance amounts:*

7.1.1 General Liability (includes premises/operations, collapse hazard, products, completed operations, contractual, independent contractors, broad form property damage, personal injury)

7.1.2 Bodily Injury stated in U.S. Dollars:
Per Occurrence \$ As per Ecuadorian Social Security
Cumulative As per Ecuadorian Social Security

7.1.3 Property Damage stated in U.S. Dollars:
Per Occurrence: \$2,000.00
Cumulative: \$500,000.00

7.1.4 Workers' Compensation and Employer's
Workers' Compensational and Occupational Disease Statutory, as
required by Ecuadorian Law

7.2 The types and amounts of insurance are the minimums required. The Contractor shall obtain any other types of insurance required by local law or that are ordinarily or customarily obtained in the location of the work. The limit of such insurance shall be as provided by law or sufficient to meet normal and customary claims.

7.3 For those Contractor employees assigned to this contract who are either United States citizens or direct hire in the United States or its possessions, the Contractor shall provide workers' compensation insurance in accordance with FAR 52.228-3.

7.4 The Contractor agrees that the Government shall not be responsible for personal injuries or for damages to:

- a) any property of the Contractor,
- b) its officers,
- c) agents,
- d) servants,
- e) employees,
- f) any other person or
- g) arising from an incident to the Contractor's performance of this contract.

7.5 The Contractor shall hold harmless and indemnify the Government from any and all claims arising, except in the instance of gross negligence on the part of the Government.

7.6 The Contractor shall obtain adequate insurance for damage to, or theft of, materials and equipment in insurance coverage for loose transit to the site or in storage on or off the site.

7.7 Government as Additional Insured. The general liability policy required of the Contractor shall name "the United States of America, acting by and through the Department of State", as an additional insured with respect to operations performed under this contract.

7.8 Time for Submission of Evidence of Insurance. The Contractor shall provide evidence of the insurance required under this contract within ten (10) calendar days after contract award. The

Government may rescind or terminate the contract if the Contractor fails to timely submit insurance certificates identified above.

8.0 LAWS AND REGULATIONS

8.1 Without additional expense to the Government, the Contractor shall comply with all laws, codes, ordinances, and regulations required to perform this work. In the event of a conflict among the contract and requirements of local law, the Contractor shall promptly advise the Contracting Officer of the conflict and of the Contractor's proposed course of action for resolution.

8.2 The Contractor shall comply with the latest version of the following US Safety and Health regulations and codes:

- EM 385-1-1: U.S. Army Corps of Engineers Safety and Health Requirements Manual.
- OSHA: Occupational Safety and Health Administration laws and regulations.

8.3 The Contractor shall comply with all local labor laws, regulations, customs, and practices pertaining to labor, safety, and similar matters, to the extent that such compliance is not inconsistent with the requirements of this contract.

8.4 The Contractor must provide, and maintain current, evidence of compliance with all registrations, licenses, and permits required by Ecuadorian law and evidence of operating an established business with a permanent address in Ecuador and telephone listing. Said evidence must be in the Contractor's official name of business.

9.0 TRANSITION PLAN

Within five (5) days after contract award, the Contracting Officer may request that the Contractor develop a plan for preparing the Contractor to assume all responsibilities for janitorial services. The plan shall establish the projected period for completion of all clearances of Contractor personnel, and the projected start date for performance of all services required under this contract. The plan shall assign priority to the selection of all supervisors to be used under the contract. The plan shall also include the documentation regarding the right of first refusal.

10. DELIVERABLES

The following items shall be delivered under this contract:

Description	Quantity	Delivery To	Date	
1.2 General Instructions	1	COR	30 days after award	
2.2 Schedules	1	COR	30 days after award	

2.3 Quality Control and Management Plan (C-QCMP)	1	COR	Proposal (Update as Needed)	
4.4.1 List of Personnel	1	COR	10 days after award	
7. Evidence of Insurance	1	COR	10 days after award	
8. Licenses and Permits	1	COR	Date of award	
9. Transition Plan	1	COR	5 days after award	
10. Work Plan (WP) and associated Activity Hazard Analysis (AHA) for every high-risk activity according POSHO requirement.	Several	COR	20 days before proposed date of specific work.	
11. Government Property Inventory	1	COR	20 days after award (every 6 months thereafter)	

10.1 Embassy will review and answer all documents within 7 days of submitted.

10.2 Deliverables that are not approved after the second review, the COR shall initiate a meeting between the contractor, the COR, any relevant parties. The purpose of this meeting shall be to resolve outstanding concerns.

11. QUALITY ASSURANCE AND SURVEILLANCE PLAN (QASP)

11.1 This plan provides an effective method to promote satisfactory contractor performance. The QASP provides a method for the Contracting Officer's Representative (COR) to monitor Contractor performance, advise the Contractor of unsatisfactory performance, and notify the Contracting Officer of continued unsatisfactory performance. The Contractor, not the Government, is responsible for management and quality control to meet the terms of the contract. The role of the Government is to monitor quality to ensure that contract standards are achieved.

Performance Objective	PWS Para	Performance Threshold
<u>Services.</u> Performs all janitorial services set forth in the Performance Work Statement	1 thru 10	All required services are performed and no more than one (1) customer complaint is received per month.

11.2 Surveillance. The COR will receive and document all complaints from Government personnel regarding the services provided. If appropriate, the COR will send the complaints to the Contractor for corrective action.

11.2.1 Contract Surveillance Surveillance is conducted professionally and to foster timely communication. The COR evaluates performance objectively for contract standards compliance, focusing on appearance, product quality and supply, safety, and timeliness.

11.2. 2. Surveillance Matrix (See Table below)

11.2.3. Performance Rating Definitions (FAR 42.1503 Table 42-1)

Performance Rating	Definition
<i>Exceptional</i>	<i>Performance meets contractual requirements and exceeds many to the government's benefit. The contractual performance of the element or sub-element being evaluated was accomplished with few minor problems for which corrective actions taken by the contractor were highly effective.</i>
<i>Very Good</i>	<i>Performance meets contractual requirements and exceeds some to the Government's benefit. The contractual performance of the element or sub-element being evaluated was accomplished with some minor problems for which corrective actions taken by the contractor were effective.</i>
<i>Satisfactory</i>	<i>Performance meets contractual requirements. The contractual performance of the element or sub-element contains some minor problems for which corrective actions taken by the contractor appear or were satisfactory.</i>
<i>Marginal</i>	<i>Performance does not meet some contractual requirements. The contractual performance of the element or sub-element being evaluated reflects a serious problem for which the contractor has not yet identified corrective actions. The contractor's proposed actions appear only marginally effective or were not fully implemented.</i>
<i>Unsatisfactory</i>	Performance does not meet most contractual requirements, and recovery is not likely in a timely manner. The contractual performance of the element or sub-element contains a serious problem(s) for which the contractor's corrective actions appear or were ineffective.

11.2.4. Surveillance Methods

- 100% Inspection: High-risk/critical items (chemical applications, window cleaning, work on ladders or other elevated platforms, MSDS/AHA approvals, annual cleanliness survey)
- Random Sampling: Routine/frequent tasks (daily cleaning)
- Periodic Sampling: Scheduled/infrequent tasks (as needed)
- Customer Feedback: Validated complaints (standard: ≤ 1 valid complaint per month)

11.2.5. Performance Reporting

- **Corrective Action Report** – Issued for deficiencies with suspense date
- **Customer Complaint Record** – Documented, validated, tracked
- **Performance Assessment Report** – Used for periodic and annual evaluations

Inspection Methodologies Examples

- Visual/site inspection of appearance and condition
- Document review (plans, reports, MSDS, AHAs, Work Plans)

#	What we check	What "Acceptable" looks like	How we check	How often we check	How we grade & what happens if not Acceptable (professional terms)
1	Overall cleanliness and appearance of facilities	Clean, neat, professional appearance; no visible trash, dust, or debris; floors clean and dry; surfaces sanitized	Walk through all areas + take photos + check high-touch surfaces	At least once a week per site + any complaint	Acceptable: Meets standard Marginal: Minor cleanliness issues Unsatisfactory: Poor appearance Unacceptable: Severe neglect → correct immediately + report to Contracting Officer
2	Floor cleaning, mopping & vacuuming	All floors swept, mopped, or vacuumed as appropriate; no visible dirt, stains, or streaks; carpets vacuumed with visible vacuum lines; hard floors dry and streak-free	Visual inspection + check for dust/debris in corners + verify appropriate cleaning method used	Daily spot checks + weekly comprehensive review	Acceptable: All floors clean and appropriate method used Marginal: 1–2 missed spots Unsatisfactory: Multiple areas missed → correct within 24 hours
3	Restroom cleaning and sanitization	Toilets, sinks, and fixtures sanitized; no odors; soap and paper products fully	Inspect all fixtures + check supplies + smell test + touch high-contact surfaces	Daily checks + random inspections	Acceptable: Fully sanitized and stocked Marginal: Minor supply shortage or small missed area Unsatisfactory: Unsanitary conditions or

		stocked; floors clean and dry; mirrors streak-free; trash emptied			empty dispensers → correct immediately
4	Trash removal and recyclin g	All trash receptacles emptied daily; liners replaced; recycling separated properly; no overflowing bins; exterior dumpster area clean and organized	Check all trash cans + verify liner replacement + inspect dumpster area	Daily for interior + weekly for exterior areas	Acceptable: All trash removed and properly sorted Margina l: 1–2 bins not emptied Unsati sfactory: Multiple overflowing bins or improper disposal → correct immediately + report to Contracting Officer if repeated
5	Dusting and surface cleanin g	All horizontal surfaces dusted (desks, shelves, windowsills , ledges); no visible dust accumulatio n; high surfaces addressed monthly; electronics cleaned carefully	White glove test on random surfaces + inspect high and low areas + check for streaks	Weekly for routine surfaces + monthly for high areas	Acceptable: Surfaces clean with minimal dust Marginal: Light dust on some surfaces Unsat isfactory: Heavy dust accumulation → correct within 48 hours
6	Windo w and glass cleanin g	Interior and exterior windows clean and streak-free; glass doors and partitions spotless;	Visual inspection from both sides + check for streaks, smudges, fingerprints	Interior: bi- weekly Exterior: monthly + after weather events	Acceptable: Clean and streak- free Unsatisfac tory: Visible streaks, dirt, or smudges → correct within 1 week + report to Contracting

		frames and sills wiped down			Officer if safety issue
7	Chemical use, safety & disinfection	All cleaning chemicals approved 10 days in advance; MSDS on file; proper dilution ratios followed; disinfection of high-touch surfaces (door handles, light switches, handrails) completed daily; EPA-approved disinfectants used	Check MSDS documentation + verify chemical approval + inspect dilution + confirm high-touch surface cleaning	Before any new chemical use + weekly verification of high-touch cleaning	Acceptable: Documents approved, proper use, surfaces disinfected Unacceptable: No approval, improper use, or missed disinfection → stop work + report to Contracting Officer immediately
8	Kitchen and break room cleaning	Countertops sanitized; sinks clean; appliances (microwave, refrigerator) cleaned inside and out; tables and chairs wiped down; floors mopped; no food debris or spills	Inspect all surfaces + open appliances + check for odors + verify floor cleanliness	Daily checks + deep clean verification weekly	Acceptable: All areas sanitized and odor-free Unsatisfactory: Food debris, spills, or unsanitary conditions → correct same day + report to Contracting Officer if health hazard
9	Supervisor, safety gear & worker	Supervisor present at all times during work.	Observe team on site Inspect uniforms & safety gear	Every day we visit + every week review reports	Acceptable: Supervisor present, full uniform & safety gear worn, appropriate

	behavior	Speaks fluent English. All workers wear full clean uniform (jacket with logo, appropriate pants, polo with name, closed-toe non-slip shoes). Everyone wears required safety gear (gloves, eye protection, appropriate PPE for chemicals, wet floor signs deployed). No sleeping, fighting, personal phone use, alcohol or disruptive behavior	on each person Confirm supervisor presence Review weekly safety reports Verify wet floor signs in use		conduct, safety protocols followed → no action needed Unacceptable: Supervisor absent OR missing safety gear OR disruptive behavior OR safety violations → Stop unsafe work immediately + Report to Contracting Officer right away + Formal warning possible (Letter of concern, Safety violation letter)
10	Carpet spot cleaning and stain removal	Spills and stains addressed within 24 hours; appropriate cleaning agents used; no water damage or discoloration; high-traffic areas maintained	Inspect carpets for stains + verify timely response to reported spills + check for proper drying	Weekly inspections + after any reported spill	Acceptable: Stains removed promptly, no damage Marginal: Minor residual staining Unsatisfactory: Stains not addressed or carpet damage → correct within 48 hours + report to Contracting Officer if damage occurs

1 1	Conference room and common area preparation	Rooms ready for use: tables/chairs arranged properly, whiteboards cleaned, trash removed, floors vacuumed/mopped, surfaces dusted	Pre-use inspection of scheduled rooms + random checks of common areas	Before scheduled meetings + daily for common areas	Acceptable: Rooms clean and ready for use Unsatisfactory: Room not prepared or dirty → correct immediately before scheduled use
1 2	Supply management and inventory	Cleaning supplies adequately stocked; paper products (toilet paper, paper towels, tissues) never run out; soap dispensers filled; contractor maintains minimum 2-week supply on hand	Check supply closets + verify dispenser levels + review contractor inventory logs	Weekly inventory check + daily dispenser verification	Acceptable: All supplies stocked, no shortages Marginal: Low supply levels (less than 3 days) Unsatisfactory: Stockouts or empty dispensers → replenish within 4 hours + report to Contracting Officer if repeated

11.3 Standard. The performance standard is that the Government receives no more than one (1) customer complaint per month. The COR shall notify the Contracting Officer of the complaints so that the Contracting Officer may take appropriate action to enforce the inspection clause (FAR 52.212-4, Contract Terms and Conditions-Commercial Items), if any of the services exceed the standard.

12. PROCEDURES.

- (a) If any Government personnel observe unacceptable services, either incomplete work or required services not being performed they should immediately contact the COR.
- (b) The COR will complete appropriate documentation to record the complaint.

- (c) If the COR determines the complaint is invalid, the COR will advise the complainant. The COR will retain the annotated copy of the written complaint for his/her files.
- (d) If the COR determines the complaint is valid, the COR will inform the Contractor and give the Contractor additional time to correct the defect, if additional time is available. The COR shall determine how much time is reasonable.
- (e) The COR shall, as a minimum, orally notify the Contractor of any valid complaints.
- (f) If the Contractor disagrees with the complaint after investigation of the site and challenges the validity of the complaint, the Contractor will notify the COR. The COR will review the matter to determine the validity of the complaint.
- (g) The COR will consider complaints as resolved unless notified otherwise by the complainant.
- (h) Repeat customer complaints are not permitted for any services. If a repeat customer complaint is received for the same deficiency during the service period, the COR will contact the Contracting Officer for appropriate action under the Inspection clause. . An update to the Contractor's Quality Control and Management Plan may be required to prevent repeating offenses.

ATTACHMENT 1

DESCRIPTION/SPECIFICATIONS/PERFORMANCE WORK STATEMENT GOVERNMENT FURNISHED PROPERTY

The Government shall make the following property available to the Contractor as "Government furnished property (GFP)" for performance under the contract:

1.1. U.S. Government identification badges.

1.2. Space: The Chancery provides limited space for storage of equipment, material and supplies. There are two closets on the 2nd and 3rd floors, three 5 square meters janitorial spaces. It is important to consider this for periodical delivery of material, etc. The Chancery also provides a desk and phone for local calls for the customer service representative on the 2nd floor. Contractor is responsible for keeping these areas clean and ensuring all hazardous and dangerous items are always locked up when not in use or under direct control and supervision when in use.

The Warehouse Building provides a 10 square meters storage space adjacent to the laundry room.

The Annex building provides a janitorial contractor locker room and a janitorial space.

ATTACHMENT 2

Contractor Furnished Material

GENERAL

The Contractor shall provide all equipment, materials, supplies, and clothing required to perform the standard routine and temporary additional services as specified in this contract. Such items include, but are not limited to uniforms, personnel equipment, tools, cleaning supplies, equipment and any other operational or administrative items required for performance of the duties and requirements of this contract.

1. Items for Contractor Personnel

J.3.1.1. Uniforms. The Contractor shall provide their employees with at least two (2) sets of uniforms per year. One uniform set consists of one pair of shoes, two pairs of pants and two shirts. The contractor shall also provide at least one winter jacket and one rain jacket per year. The Contractor employees must always wear a clean uniform. Additional required clothing such as plastic aprons, plastic gloves, rubber boots, shall also be provided by the contractor. Should the uniforms become unserviceable prior to the end of the contract period, the Contractor will replace them as necessary. Also, the Contractor shall bear the cost of purchasing, cleaning, pressing, and repairing the uniforms.

1.5. First Aid Kit. The Contractor shall provide their employees with a complete First Aid Kit and shall always be kept replenished. It shall be installed in the break area.

1.6. Safety and Personal Protective Equipment. Safety equipment is to meet all the requirements identified in the Safety Management Plan and specific Activity Hazard Analysis. To include but not limited to signs, safety cones, warning posts and chains; ear plugs, protective eyewear, respirators, masks, hand protection, protective clothing, rainwear, back supports, harnesses, lanyards, anchor kits, body belts, knee cushions, etc. Each janitor shall have at all time ear plugs and any additional safety equipment to perform a task. Contractor shall maintain a stock of safety equipment in case the personnel need immediate replacement.

2. Chemicals/Items for Janitorial Services

2.1. Cleaning Chemicals, Products and Expendable Supplies. The Contractor shall provide janitorial – cleaning and expendable supplies to perform their task according to U. S. Industry best practices, as the following, but not limited to:

- Bathroom cleaner
- Cleanser scours powder
- Toilet bowl, urinal cleaner
- Urine remover
- Shower - tub tile cleaner
- All-purpose cleaner
- Multi surface cleaner
- Cleaner and disinfectant

- Cabinet and wood cleaner
- Heavy duty cleaner
- Stain remover
- Nonflammable contact cleaner
- Degreaser
- Disinfectant and sanitizers
- Bleach
- Lime and scale removers
- Glass cleaners
- Vandal Mark remover (graffiti)
- Gum and wax remover
- Wood paste wax
- Metal, silver, chrome and brass polishers
- Furniture polish and wax protection
- Wooden floor cleaner
- Toilet and urinal deodorizers
- Restroom deodorizer
- Dust remover
- Floor polish remover
- Marble cleaner and polisher
- Orange base crystallizer
- Floor stripper
- Floor finisher (polish)
- White floor wax
- Carpet stain remover
- Carpet shampoo
- Glass-window cleaner
- Antibacterial liquid soap/cleanser with moisturizer for automated dispensers
- Alcohol based hand sanitizer gel (alcohol 65%)
- Roll paper towel: # 26910, GP SofPull® White 100 Percent Recycled Fiber Hardwound Roll Paper Towel for automated roll towel dispenser.
- Roll toilet paper Jumbo Jr.: 12798, GP Envision® White 2-Ply Jumbo Jr. EPA Compliant Bathroom Tissue
- Toilet seat cover: P Safe-T-Gard™ White 1/2-Fold Toilet Seat covers
- Folded paper towels: 20389, GP Preference® White Multifold Paper Towels
- Roll toilet paper residential: silky smooth 3 layers jumbo rolls extra strength, unscented.
- Disinfecting Gym Wipes, towelette size 6"x8", Disinfecting Wipes shall not contain alcohol or bleach.
- Hygolet feminine sanitary napkin bags for the dispenser
- Hygolet feminine sanitary napkin bags for the disposal receptacle with lid

The Contractor shall maintain stock of cleaning products and expendable supplies to properly cover the service uninterruptedly. The contractor shall provide technical data sheet for the products to be used.

2.2. Labeling and Storing of Chemicals. The cleaning chemicals materials such as soap, cleaners, degreasers, etc., must be in a labeled bottle/container, to include dispensers with labels. The bottle-dispenser shall be approved for the product. The labels shall be of a plastic material and the print has to be readable in spite of the contact with the liquid according to

The Globally Harmonized System of Classification and Labeling of Chemicals (GHS). It shall be replaced as many times as needed. A technical product description (technical data sheet) of each product to be used shall be given to the COR for approval, prior to use.

3. Materials and Tools for Janitorial Services

3.1. Cleaning Material and Tools. The Contractor shall provide all needed material to provide a professional janitorial service. Following is a comprehensive list with the minimum requirements:

- Brooms with handle: fine sweeping, smooth surface, general purpose, push, corn, whisk and angle.
- Brushes: Floor scrub with handle, scrub, dish, short handle, long handle, scratch.
- Brushes: Toilet bowl brush color coded with holder, urinal brush color coded with holder.
- Dust Pans: Long handled dustpan, hand held dust pan, mini-dust pan with brush.
- Cleaning pads and holders: Swivel and fixed pad holder with handle. Pads: light, medium and heavy duty
- Dust mops handles and frames: Pad holders with handle of different lengths, Pad w/ fringe of different lengths and materials (microfiber, cotton, etc.), Duster heads with handle, Wet mops cotton and synthetic.
- Wiping rags, cloths and flannels (different colors to distinguish the purpose, as an example: white for bathrooms, grey for kitchenettes, red for desks, etc.)
- Polishing pads, fibers
- Rubber hand gloves of different code colors
- Mop bucket and wringer combination on wheels
- Squeegees with handle: Squeegees of different lengths with handle
- Buckets and palls with handle
- Plastic pails different colors
- Paper toilet paper dispenser Jumbo Jr.
- Toilet seat cover dispenser
- Rubbermaid round utility trash containers Brute 55 gallons with universal Drum Dolly.
- Caddy bag
- Plasticized textile bag Hamper (30 gal) on wheels
- Rubbermaid Janitor-Housekeeping carts with 1-3 shelves
- Maid Caddy tray
- Translucent and clear trash liners and bags (various sizes) (post-consumer recycled content)
- Disinfecting Gym Wipes dispenser for towelette size 6"x8"
- Hygolet feminine sanitary napkin bags dispenser, or equal
- Hygolet feminine sanitary napkin bags receptacle with lid, or equal
- Mop and broom holders
- Mop and broom racks holders
- UL approved electrical extension cords
- Fiber glass ladders of different sizes and types as needed (to comply with safety standards)
- Rolling step stool or 1-2 step Stool

- 4-gallon plastic (PVC) water containers with built in handle and screw bottleneck with caps. Replace cap each time bottle is refilled.
- Pipe - Bottle Brushes: tube brush of different sizes and diameters: bristle material nylon, polyester and wire.

3.2. The Contractor shall maintain a stock of this cleaning material, tools and safety equipment to properly provide the service uninterruptedly. For the 30 gal. hamper on wheels, the Contractor shall have one hamper for each janitor emptying trash cans.

3.3. The Contractor shall provide separated set of mops, brushes, brooms, gloves, rags, etc., for each type of cleaning area: bathrooms, general working areas, health unit areas. Every type of cleaning areas shall have a different color code for easy identification and to avoid cross contamination. Color code shall be approved by the COR.

4. Electric Equipment.

4.1. All of the equipment used to provide the services required in this contract must meet the technical specifications, including decibels of the product suggested, thus, the same specification applies for an equivalent product. The Contractor shall provide, but not limited to the following electric equipment:

	Chan	Annex	WHA	CACs	Exterior	Total
Carpet Extractor. 20 gal. self-contained carpet extractor, with carpet extractor wand, hot water.	1					1
Whole room dryer, Windshear Downdraft, brand Tornado, Karcher, or equivalent.	5	2				7
Vacuum, Eliminator Dry and Wet/Dry vacuum, brand Karcher, Nilfisk or equivalent.	3					3
Commercial Floor Sweeper, Walk behind Push Sweeper 27"-32" with two brushes.			1			1
Commercial Steam Cleaner, DE 4002m, brand Karcher or equivalent for upholstery.	1					1
Portable on wheels, motor powered cold-water pressure washer, 2200 PSI or more, brand Hydrotek SC35006VG or equivalent.	1		1			2
Multipurpose spin scrub-buffer machines, high speed floor machines for buffing, polishing, scrubbing, stripping, mod BDP 51/1500 C, with clutch plates, pad's holders, scrub brushes for different purposes, brand Karcher or equivalent.	3		1		1	5

Commercial vacuum cleaners, enhanced with HEPA filter, 61 dBA, 50 feet electric cord length, with complete set of accessories, GD930 Euroclean or equivalent	5	2		1	1	9
--	---	---	--	---	---	---

Notes:

1. amount required next to the descriptions of the item is the minimum amount required on each site. Contractor shall determine the amount of equipment to comply with the objective of this SOW.
2. Contractor shall submit proof of qualification of the personnel operating power tools to ensure proper use.

4.2. Maintenance and Repair. The Contractor shall perform a preventive maintenance schedule of all equipment. The Contractor shall provide a schedule of the manufacturer recommended preventive maintenance schedule. In the event of equipment out of order, no later than 48 hours, the Contractor shall replace it with one working and remove the need to be repaired equipment. All equipment used under this contract shall be in excellent operating condition without frayed cords, taped hoses, or other hazardous conditions.

4.3. The contractor must provide an inventory of the equipment that will be kept in our facilities. This inventory will be used to allow the contractor to take the equipment out of the chancery for repair or at the term of the Contract. The equipment must be marked with the Contractors company logo for easy identification. Equipment not listed on the inventory list will not be removed from U. S. Government property.

5. Environmentally Friendly Cleaning Products.

5.1. The Contractor shall, to the maximum extent possible, use environmentally friendly cleaning-products, EPA compliant for recycled fiber content, Green Seal certified product and whenever available USGBA LEED.

5.2. The Contractor shall identify products by brand name for each of the following product types:

- 1) Urine remover
- 2) Shower - tub tile cleaner
- 3) All-purpose cleaner
- 4) Multi surface cleaner
- 5) Cleaner and disinfectant
- 6) Cabinet and wood cleaner
- 7) Heavy duty cleaner
- 8) Stain remover
- 9) Nonflammable contact cleaner
- 10) Degreaser
- 11) Disinfectant and sanitizers
- 12) Bleach
- 13) Lime and scale removers
- 14) Glass cleaners
- 15) Vandal Mark remover (graffiti)

- 16) Gum and wax remover
- 17) Wood paste wax
- 18) Metal, silver, chrome and brass polishers
- 19) Furniture polish and wax protection
- 20) Wooden floor cleaner
- 21) Toilet and urinal deodorizers
- 22) Restroom deodorizer
- 23) Dust remover
- 24) Floor polish remover
- 25) Marble cleaner and polisher
- 26) Orange base crystallizer
- 27) Floor stripper
- 28) Floor finisher (polish)
- 29) White floor wax
- 30) Carpet stain remover
- 31) Carpet shampoo
- 32) Glass-window cleaner
- 33) Antibacterial liquid soap/cleanser with moisturizer for automated dispensers
- 34) Alcohol based hand sanitizer gel (alcohol > 65%)
- 35) Roll paper towel: # 26910, GP SofPull® White 100 Percent Recycled Fiber Hardwound Roll Paper Towel for automated roll towel dispenser.
- 36) Roll toilet paper Jumbo Jr.: 12798, GP Envision® White 2-Ply Jumbo Jr. EPA Compliant Bathroom Tissue
- 37) Toilet seat cover: P Safe-T-Gard™ White 1/2-Fold Toilet Seat covers
- 38) Folded paper towels: 20389, GP Preference® White Multifold Paper Towels
- 39) Roll toilet paper residential: silky smooth 3 layers jumbo rolls extra strength, unscented.
- 40) Disinfecting Gym Wipes, towelette size 6"x8", Disinfecting Wipes shall not contain alcohol or bleach.
- 41) Hygolet feminine sanitary napkin bags for the dispenser
- 42) Hygolet feminine sanitary napkin bags for the disposal receptacle with lid

5.3. The Contractor shall provide following non-chemical products containing the maximum feasible amount of recovered materials:

(1) Toilet paper - The bathroom tissue must contain at least 100% recovered materials and 20% post-consumer content.

(2) Paper Toilet Seat Covers – Paper toilet seat covers must contain at least 100% recovered materials and 40% post-consumer content.

(3) Paper Towels - The paper towels must contain at least 100% recovered materials and 40% post-consumer content.

(4) General Purpose Industrial Wipes - The general purpose industrial wipes must contain at least 100% recovered materials and 40% post-consumer content.

(5) Plastic Trash Bags - Plastic trash bags must contain at least 25% post-consumer content.

(6) Urinal screens - Urinal screens deodorize with a fresh scent and filter debris to prevent clogged drains

5.4. All non-chemical products (paper, plastic, etc.) should conform to the Environmental Protection Agency (EPA) Comprehensive Procurement Guide (CPG) if the products are CPG-designated items. Information on environmentally preferable products (EPP) and CPG information is available on the Internet at

<http://www.epa.gov/cpg>. The Contractor must keep all dangerous / hazardous / flammable materials locked up when they are not directly in use.

The Contractors may propose more than one product within a product category and/or propose a product or products addressing more than one product category.

5.5. Once this list of products has been approved by the COR, the Contractor is responsible for using only those approved cleaning chemical products in the building. If for some reason the product is found later to be ineffective, the Contractor or Contracting Officer may propose an “equivalent” product for consideration. If the parties agree to the replacement product, the contract will be modified.

5.6. The Contractor shall purchase the least hazardous most dilute versions like the products that are available on the local market. Concentrates that must be diluted at post are prohibited. Limit cleaning solutions to water based or dilute organic chemical based (Windex, 409 fit this bill) and dilute bleach solutions off site. The use of cleaning products that contain such organic solvents as, xylene, toluene, formaldehyde, glutaraldehyde, and benzene are prohibited. The Contractor shall provide the COR with Material Safety Data Sheets for everything that is brought onto post for approval.

5.7 The Contractor shall train its personnel in a monthly basis on the proper use of products and equipment. Training sessions shall include the safety involved in the operation and use of hazardous materials and powered tools.

All of the above items, materials, tools, equipment, products, etc., to be used under this Contract must be pre-approved by the COR.

SECTION 2 - CONTRACT CLAUSES

52.212-4 CONTRACT TERMS AND CONDITIONS – COMMERCIAL ITEMS (DEC 2022) IS INCORPORATED BY REFERENCE. (SEE SF-1449, BLOCK 27A): Incorporate the effective date of (NOV 2023).

52.204-7 System for Award Management—Registration. (NOV 2024)

52.204-9 Personal Identity Verification of Contractor Personnel. (JAN 2011)

[52.204-10](#), Reporting Executive Compensation and First-Tier Subcontract Awards (Jun 2020) (Pub. L. 109-282) ([31 U.S.C. 6101 note](#)).

52.204-13 System for Award Management—Maintenance. (OCT 2018)

[52.204-14](#), Service Contract Reporting Requirements (Oct 2016) (Pub. L. 111-117, section 743 of Div. C).

[52.204-15](#), Service Contract Reporting Requirements for Indefinite-Delivery Contracts (Oct 2016) (Pub. L. 111-117, section 743 of Div. C).

52.204-19 Incorporation by Reference of Representations and Certifications (DEC 2014)

52.204-90 Offeror Identification. (OCT 2025)

52.204-91 Contractor Identification (OCT 2025)

52.209-1 Qualification Requirements. (FEB 1995)

52.209-2 Prohibition on Contracting With Inverted Domestic Corporations-Representation. (NOV 2015)

52.209-5 Certification Regarding Responsibility Matters. (AUG 2020)

[52.209-6](#), Protecting the Government's Interest When Subcontracting With Contractors Debarred, Suspended, Proposed for Debarment, or Voluntarily Excluded. (JAN 2025) ([31 U.S.C. 6101 note](#)).

52.209-7 Information Regarding Responsibility Matters (OCT 2018)

[52.209-9](#), Updates of Publicly Available Information Regarding Responsibility Matters (OCT 2018) ([41 U.S.C. 2313](#)).

52.209-10 Prohibition on Contracting With Inverted Domestic Corporations (NOV 2015).

52.209-12 Certification Regarding Tax Matters. (OCT 2025)

52.209-13 Violation of Arms Control Treaties or Agreements-Certification. (NOV 2021)

52.217-6 Option for Increased Quantity (MAR 1989)

[52.222-19](#), Child Labor—Cooperation with Authorities and Remedies (Jan 2025)([E.O. 13126](#)).

[52.222-50](#), Combating Trafficking in Persons (Oct 2025) (22 U.S.C. chapter 78 and E.O. 13627).

52.225-14 Inconsistency between English Version and Translation of Contract. (FEB 2000)

52.226-7 Drug-Free Workplace (MAY 2024)

[52.226-8](#), Encouraging Contractor Policies to Ban Text Messaging While Driving (May 2024) ([E.O. 13513](#)).

52.228-3 Workers' Compensation Insurance (Defense Base Act). (JUL 2014)

52.228-5 Insurance-Work on a Government Installation (JAN 1997)

52.229-6 Taxes-Foreign Fixed-Price Contracts. (FEB 2013)

52.232-11 Extras (APR 1984)

52.232-17 Interest

52.232-24 Prohibition of Assignment of Claims.

52.232-25 Prompt Payment.

[52.233-3](#), Protest After Award (Aug 1996).

[52.233-4](#), Applicable Law for Breach of Contract Claim (Oct 2004).

52.243-1 Changes-Fixed-Price

52.229-12 TAX ON CERTAIN FOREIGN PROCUREMENTS—NOTICE AND REPRESENTATION (FEB 2021)

(a) *Definitions.* As used in this clause—

Foreign person means any person other than a United States person.

United States person, as defined in [26 U.S.C. 7701\(a\)\(30\)](#), means—

- (1) A citizen or resident of the United States;
- (2) A domestic partnership;
- (3) A domestic corporation;
- (4) Any estate (other than a foreign estate, within the meaning of [26 U.S.C. 7701\(a\)\(31\)](#)); and
- (5) Any trust if-
 - (i) A court within the United States is able to exercise primary supervision over the administration of the trust; and
 - (ii) One or more United States persons have the authority to control all substantial decisions of the trust.

(b) This clause applies only to foreign persons. It implements [26 U.S.C. 5000C](#) and its implementing regulations at 26 CFR 1.5000C-1 through 1.5000C-7.

(c)

(1) If the Contractor is a foreign person and has only a partial or no exemption to the withholding, the Contractor shall include the Department of the Treasury Internal Revenue Service Form W-14, Certificate of Foreign Contracting Party Receiving Federal Procurement Payments, with each voucher or invoice submitted under this contract throughout the period in which this status is applicable. The excise tax withholding is applied at the payment level, not at the contract level. The Contractor should revise each IRS Form W-14 submission to reflect the exemption (if any) that applies to that particular invoice, such as a different exemption applying. In the absence of a completed IRS Form W-14 accompanying a payment request, the default withholding percentage is 2 percent for the section 5000C withholding for that payment request. Information about IRS Form W-14 and its separate instructions is available via the internet at www.irs.gov/w14.

(2) If the Contractor is a foreign person and has indicated in its offer in the provision [52.229-11](#), Tax on Certain Foreign Procurements—Notice and Representation, that it is fully exempt from the withholding, and certified the full exemption on the IRS Form W-14, and if that full exemption no longer applies due to a change in circumstances during the performance of the contract that causes the Contractor to become subject to the withholding for the 2 percent excise tax then the Contractor shall—

(i) Notify the Contracting Officer within 30 days of a change in circumstances that causes the Contractor to be subject to the excise tax withholding under [26 U.S.C. 5000C](#); and

(ii) Comply with paragraph (c)(1) of this clause.

(d) The Government will withhold a full 2 percent of each payment unless the Contractor claims an exemption. If the Contractor enters a ratio in Line 12 of the IRS Form W-14, the result of Line 11 divided by Line 10, the Government will withhold from each payment an amount equal to 2 percent multiplied by the contract ratio. If the Contractor marks box 9 of the IRS Form W-14 (rather than completes Lines 10 through 12), the Contractor must identify and enter the specific exempt and nonexempt amounts in Line 15 of the IRS Form W-14; the Government will then withhold 2 percent only from the nonexempt amount. See the IRS Form W-14 and its instructions.

(e) Exemptions from the withholding under this clause are described at 26 CFR 1.5000C-1(d)(5) through (7). Any exemption claimed and self-certified on the IRS Form W-14 is subject to audit by the IRS. Any disputes regarding the imposition and collection of the [26 U.S.C. 5000C](#) tax are adjudicated by the IRS as the [26 U.S.C. 5000C](#) tax is a tax matter, not a contract issue.

(f) Taxes imposed under [26 U.S.C. 5000C](#) may not be—

(1) Included in the contract price; nor

(2) Reimbursed.

(g) A taxpayer may, for a fee, seek advice from the Internal Revenue Service (IRS) as to the proper tax treatment of a transaction. This is called a private letter ruling. Also, the IRS may publish a revenue ruling, which is an official interpretation by the IRS of the Internal Revenue Code, related statutes, tax treaties, and regulations. A revenue ruling is the conclusion of the IRS on how the law is applied to a specific set of facts. For questions relating to the interpretation of the IRS regulations go to <https://www.irs.gov/help/tax-law-questions>.

(End of clause)

52.204-6 Unique Entity Identifier.

Unique Entity Identifier (Oct 2016)

(a) *Definition.* As used in this provision-

Electronic Funds Transfer (EFT) indicator means a four-character suffix to the unique entity identifier. The suffix is assigned at the discretion of the commercial, nonprofit, or Government entity to establish additional System for Award Management records for identifying alternative EFT accounts (see [subpart 32.11](#)) for the same entity.

Unique entity identifier means a number or other identifier used to identify a specific commercial, nonprofit, or Government entity. See www.sam.gov for the designated entity for establishing unique entity identifiers.

(b) The Offeror shall enter, in the block with its name and address on the cover page of its offer, the annotation "Unique Entity Identifier" followed by the unique entity identifier that identifies the Offeror's name and address exactly as stated in the offer. The Offeror also shall enter its EFT indicator, if applicable.

(c) If the Offeror does not have a unique entity identifier, it should contact the entity designated at www.sam.gov for establishment of the unique entity identifier directly to obtain one. The Offeror should be prepared to provide the following information:

- (1) Company legal business name.
- (2) Tradestyle, doing business, or other name by which your entity is commonly recognized.
- (3) Company physical street address, city, state and Zip Code.
- (4) Company mailing address, city, state and Zip Code (if separate from physical).
- (5) Company telephone number.
- (6) Date the company was started.
- (7) Number of employees at your location.
- (8) Chief executive officer/key manager.
- (9) Line of business (industry).
- (10) Company headquarters name and address (reporting relationship within your entity).

(End of provision)

ADDENDUM TO CONTRACT CLAUSES
FAR AND DOSAR CLAUSES NOT PRESCRIBED IN PART 12

52.252-2 CLAUSES INCORPORATED BY REFERENCE (FEB 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. In addition, the full text of a clause may be accessed electronically at: Acquisition.gov this address is subject to change.

If the Federal Acquisition Regulation (FAR) is not available at the location indicated above, use the Department of State Acquisition website at e-CFR to see the links to the FAR. You may also use an Internet “search engine” (for example, Google, Yahoo or Excite) to obtain the latest location of the most current FAR.

THE FOLLOWING FEDERAL ACQUISITION REGULATIONS (FAR) CLAUSES ARE
INCORPORATED BY REFERENCE:

CLAUSE	TITLE AND DATE
52.204-9	PERSONAL IDENTITY VERIFICATION OF CONTRACTOR PERSONNEL (JAN 2011)
52.204-13	SYSTEM FOR AWARD MANAGEMENT MAINTENANCE (OCT 2018)
52.225-14	INCONSISTENCY BETWEEN ENGLISH VERSION AND TRANSLATION OF CONTRACT (FEB 2000)
52.228-3	WORKERS’ COMPENSATION INSURANCE (DEFENSE BASE ACT) (JUL 2014)
52.228-5	INSURANCE - WORK ON A GOVERNMENT INSTALLATION (JAN 1997)
52.229-6	FOREIGN FIXED PRICE CONTRACTS (FEB 2013)
52.232-39	UNENFORCEABILITY OF UNAUTHORIZED OBLIGATIONS (JUNE 2013)
52.232-40	PROVIDING ACCELERATED PAYMENTS TO SMALL BUSINESS SUBCONTRACTORS (MAR 2023)
52.236-13	ACCIDENT PREVENTION (NOV 1991)
52.244-6	SUBCONTRACTS FOR COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (OCT 2025)

THE FOLLOWING FAR CLAUSE(S) IS/ARE PROVIDED IN FULL TEXT:

52.216-18 ORDERING (AUG 2020)

- (a) Any supplies and services to be furnished under this contract shall be ordered by issuance of delivery orders or task orders by the individuals or activities designated in the Schedule. Such orders may be issued from the contract award through the term of the award.
- (b) All delivery orders or task orders are subject to the terms and conditions of this contract. In the event of conflict between a delivery order or task order and this contract, the contract shall control.
- (c) A delivery order or task order is considered “issued” when –
 - (1) If sent by mail (includes transmittal by U.S. mail or private delivery service), the Government deposits the order in the mail;
 - (2) If sent by fax, the Government transmits the order to the Contractor’s fax number; or
 - (3) If sent electronically, the Government either –
 - (i) Posts a copy of the delivery order or task order to a Government document access system, and notice is sent to the Contractor; or
 - (ii) Distributes the delivery order or task order via email to the Contractor’s email address.
- (d) Orders may be issued by methods other than those enumerated in this clause only if authorized in the contract.
- (e) (End of clause)

52.216-19 ORDER LIMITATIONS (OCT 1995)

- (a) Minimum order. When the Government requires supplies or services covered by this contract in an amount of less than **100 square meters**, the Government is not obligated to purchase, nor is the Contractor obligated to furnish, those supplies or services under the contract.
- (b) Maximum order. The Contractor is not obligated to honor-
 - (1) Any order for a single item in excess of fifteen thousand (15,000) square meters;
 - (2) Any order for a combination of items in excess of of thirty-two thousand (32,000) square meters
 - (3) A series of orders from the same ordering office within **two days** that together call for quantities exceeding the limitation in subparagraph (1) or (2) above.

(c) If this is a requirements contract (i.e., includes the Requirement clause at subsection 52.216-21 of the Federal Acquisition Regulation (FAR)), the Government is not required to order a part of any one requirement from the Contractor if that requirement exceeds the maximum-order limitations in paragraph (b) above.

(d) Notwithstanding paragraphs (b) and (c) above, the Contractor shall honor any order exceeding the maximum order limitations in paragraph (b), unless that order (or orders) is returned to the ordering office within *ten days* after issuance, with written notice stating the Contractor's intent not to ship the item (or items) called for and the reasons. Upon receiving this notice, the Government may acquire the supplies or services from another source.

(End of clause)

52.216-22 INDEFINITE QUANTITY (OCT 1995) *

(a) This is an indefinite-quantity contract for the supplies or services specified, and effective for the period stated, in the Schedule. The quantities of supplies and services specified in the Schedule are estimates only and are not purchased by this contract.

(b) Delivery or performance shall be made only as authorized by orders issued in accordance with the Ordering clause. The Contractor shall furnish to the Government, when and if ordered, the supplies or services specified in the Schedule up to and including the quantity designated in the Schedule as the “maximum.” The Government shall order at least the quantity of supplies or services designated in the Schedule as the “minimum.”

(c) Except for any limitations on quantities in the Order Limitations clause or in the Schedule, there is no limit on the number of orders that may be issued. The Government may issue orders requiring delivery to multiple destinations or performance at multiple locations.

(d) Any order issued during the effective period of this contract and not completed within that period shall be completed by the Contractor within the time specified in the order. The contract shall govern the Contractor's and Government's rights and obligations with respect to that order to the same extent as if the order were completed during the contract's effective period; *provided*, that the Contractor shall not be required to make any deliveries under this contract after one year beyond the contract's effective period.

*Applies to temporary additional services.

(End of clause)

52.217-8 OPTION TO EXTEND SERVICES (NOV 1999)

The Government may require continued performance of any services within the limits and at the rates specified in the contract. The option provision may be exercised more than once, but the total extension of performance hereunder shall not exceed 6 months. The Contracting

Officer may exercise the option by written notice to the Contractor within the performance period of the contract.

52.217-9 OPTION TO EXTEND THE TERM OF THE CONTRACT (MAR 2000)

(a) The Government may extend the term of this contract by written notice to the Contractor within the performance period of the contract or within 30 days after funds for the option year become available, whichever is later. The preliminary notice does not commit the Government to an extension.

(b) If the Government exercises this option, the extended contract shall be considered to include this option clause.

(c) The total duration of this contract, including the exercise of any options under this clause, shall not exceed *5 years and six months*.

(End of Clause)

52.232-19 AVAILABILITY OF FUNDS FOR THE NEXT FISCAL YEAR (APR 1984)

Funds are not presently available for performance under this contract beyond September 30 of the current calendar year. The Government's obligation for performance of this contract beyond that date is contingent upon the availability of appropriated funds from which payment for contract purposes can be made. No legal liability on the part of the Government for any payment may arise for performance under this contract September 30 of the current calendar year, until funds are made available to the Contracting Officer for performance and until the Contractor receives notice of availability, to be confirmed in writing by the Contracting Officer.

(End of Clause)

THE FOLLOWING DOSAR CLAUSE(S) IS/ARE PROVIDED IN FULL TEXT:

652.204-70 DEPARTMENT OF STATE PERSONAL IDENTIFICATION CARD
ISSUANCE (FEB 2015)

(a) The Contractor shall comply with the Department of State (DOS) Personal Identification Card Policy and Procedures for all employees performing under this contract who require frequent and continuing access to DOS facilities, or information systems. The Contractor shall insert the substance of this clause in all subcontracts when the subcontractor's employees will require frequent and continuing access to DOS facilities, or information systems.

(b) The DOS Personal Identification Card Policy and Procedures may be accessed at <http://www.state.gov/m/ds/rls/rpt/c21664.htm>.

(End of clause)

CONTRACTOR IDENTIFICATION (JULY 2008)

Contract performance may require contractor personnel to attend meetings with government personnel and the public, work within government offices, and/or utilize government email.

Contractor personnel must take the following actions to identify themselves as non-federal employees:

- 1) Use an email signature block that shows name, the office being supported and company affiliation (e.g., “John Smith, Office of Human Resources, ACME Corporation Support Contractor”);
- 2) Clearly identify themselves and their contractor affiliation in meetings.
- 3) Identify their contractor affiliation in Departmental e-mail and phone listings whenever contractor personnel are included in those listings; and
- 4) Contractor personnel may not utilize Department of State logos or indicia on business cards.

652.215-70 EXAMINATION OF RECORDS

(a) With respect to matters related to this contract or a subcontract hereunder, the Department of State Office of the Inspector General, or an authorized representative, shall have upon request:

(1) Complete, prompt, and free access to all Contractor and Subcontractor files (in any format), documents, records, data, premises, and employees, except as limited by law; and

(2) The right to interview any current Contractor and Subcontractor personnel, individually and directly, with respect to such matters.

(b) This clause may not be construed to require the contractor or any subcontractor to create or maintain any record that the contractor or subcontractor does not maintain in the ordinary course of business or pursuant to a provision of law.

(c) The Contractor shall insert a clause containing all the terms of this clause, including this [paragraph \(c\)](#), in all subcontracts under this contract other than acquisitions described in Federal Acquisition Regulation 15.209(b)(1).

652.225-71 SECTION 8(A) OF THE EXPORT ADMINISTRATION ACT OF 1979, AS AMENDED (AUG 1999)

(a) Section 8(a) of the U.S. Export Administration Act of 1979, as amended (50 U.S.C. 2407(a)), prohibits compliance by U.S. persons with any boycott fostered by a foreign country against a country which is friendly to the United States, and which is not itself the object of any form of boycott pursuant to United States law or regulation. The Boycott of Israel by Arab League countries is such a boycott, and therefore, the following actions, if taken with intent to comply with, further, or support the Arab League Boycott of Israel, are prohibited activities under the Export Administration Act:

(1) Refusing, or requiring any U.S. person to refuse to do business with or in Israel, with any Israeli business concern, or with any national or resident of Israel, or with any other person, pursuant to an agreement of, or a request from or on behalf of a boycotting country;

(2) Refusing, or requiring any U.S. person to refuse to employ or otherwise discriminating against any person on the basis of race, religion, sex, or national origin of that person or of any owner, officer, director, or employee of such person;

(3) Furnishing information with respect to the race, religion, or national origin of any U.S. person or of any owner, officer, director, or employee of such U.S. person;

(4) Furnishing information about whether any person has, has had, or proposes to have any business relationship (including a relationship by way of sale, purchase, legal or commercial representation, shipping or other transport, insurance, investment, or supply) with or in the State of Israel, with any business concern organized under the laws of the State of Israel, with any Israeli national or resident, or with any person which is known or believed to be restricted from having any business relationship with or in Israel;

(5) Furnishing information about whether any person is a member of, has made contributions to, or is otherwise associated with or involved in the activities of any charitable or fraternal organization which supports the State of Israel; and,

(6) Paying, honoring, confirming, or otherwise implementing a letter of credit which contains any condition or requirement against doing business with the State of Israel.

(b) Under Section 8(a), the following types of activities are not forbidden “compliance with the boycott,” and are therefore exempted from Section 8(a)'s prohibitions listed in paragraphs (a)(1)-(6) above:

- (1) Complying or agreeing to comply with requirements:
 - i. Prohibiting the import of goods or services from Israel or goods produced or services provided by any business concern organized under the laws of Israel or by nationals or residents of Israel; or,
 - ii. Prohibiting the shipment of goods to Israel on a carrier of Israel, or by a route other than that prescribed by the boycotting country or the recipient of the shipment;
- (2) Complying or agreeing to comply with import and shipping document requirements with respect to the country of origin, the name of the carrier and route of shipment, the name of the supplier of the shipment or the name of the provider of other services, except that no information knowingly furnished or conveyed in response to such requirements may be stated in negative, blacklisting, or similar exclusionary terms, other than with respect to carriers or route of shipments as may be permitted by such regulations in order to comply with precautionary requirements protecting against war risks and confiscation;
- (3) Complying or agreeing to comply in the normal course of business with the unilateral and specific selection by a boycotting country, or national or resident thereof, of carriers, insurance, suppliers of services to be performed within the boycotting country or specific goods which, in the normal course of business, are identifiable by source when imported into the boycotting country;
- (4) Complying or agreeing to comply with the export requirements of the boycotting country relating to shipments or transshipments of exports to Israel, to any business concern of or organized under the laws of Israel, or to any national or resident of Israel;
- (5) Compliance by an individual or agreement by an individual to comply with the immigration or passport requirements of any country with respect to such individual or any

member of such individual's family or with requests for information regarding requirements of employment of such individual within the boycotting country; and,

(6) Compliance by a U.S. person resident in a foreign country or agreement by such person to comply with the laws of that country with respect to his or her activities exclusively therein, and such regulations may contain exceptions for such resident complying with the laws or regulations of that foreign country governing imports into such country of trademarked, trade named, or similarly specifically identifiable products, or components of products for his or her own use, including the performance of contractual services within that country, as may be defined by such regulations.

652.229-70 EXCISE TAX EXEMPTION STATEMENT FOR CONTRACTORS WITHIN THE UNITED STATES (JULY 1988)

This is to certify that the item(s) covered by this contract is/are for export solely for the use of the U.S. Foreign Service Post identified in the contract schedule.

The Contractor shall use a photocopy of this contract as evidence of intent to export. Final proof of exportation may be obtained from the agent handling the shipment. Such proof shall be accepted in lieu of payment of excise tax.

652.232-70 PAYMENT SCHEDULE AND INVOICE SUBMISSION (FIXED-PRICE) (AUG 1999)

(a) General. The Government shall pay the Contractor as full compensation for all work required, performed, and accepted under this contract the price stated in this contract.

(b) Invoice Submission. The Contractor shall submit invoices in electronic format and upload them to the payment platform. To constitute a proper invoice, the invoice shall include all the items required by FAR 32.905(e).

The Contractor shall show Value Added Tax (VAT) as a separate item on invoices submitted for payment.

(b) Contractor Remittance Address. The Government will make payment to the Contractor's address stated on the cover page of this contract, unless a separate remittance address is shown below:

652.236-70 ADDITIONAL SAFETY MEASURES (OCT 2017)

In addition to the safety/accident prevention requirements of FAR 52.236-13, Accident Prevention Alternate I, the contractor shall comply with the following additional safety measures.

(a) *High Risk Activities.* If the project contains any of the following high risk activities, the contractor shall follow the section in the latest edition, as of the date of the solicitation, of the U.S. Army Corps of Engineers Safety and Health manual, EM 385-1-1, that corresponds to the high risk activity. Before work may proceed, the contractor must obtain approval from the COR of the

written safety plan required by FAR 52.236-13, Accident Prevention Alternate I (see paragraph (f) below), containing specific hazard mitigation and control techniques.

- (1) Scaffolding;
- (2) Work at heights above 1.8 meters;
- (3) Trenching or other excavation greater than one (1) meter in depth;
- (4) Earth-moving equipment and other large vehicles;
- (5) Cranes and rigging;
- (6) Welding or cutting and other hot work;
- (7) Partial or total demolition of a structure;
- (8) Temporary wiring, use of portable electric tools, or other recognized electrical hazards. Temporary wiring and portable electric tools require the use of a ground fault circuit interrupter (GFCI) in the affected circuits; other electrical hazards may also require the use of a GFCI;
- (9) Work in confined spaces (limited exits, potential for oxygen less than 19.5 percent or combustible atmosphere, potential for solid or liquid engulfment, or other hazards considered to be immediately dangerous to life or health such as water tanks, transformer vaults, sewers, cisterns, etc.).
- (10) Hazardous materials - a material with a physical or health hazard including but not limited to, flammable, explosive, corrosive, toxic, reactive or unstable, or any operations, which creates any kind of contamination inside an occupied building such as dust from demolition activities, paints, solvents, etc.; or
- (11) Hazardous noise levels as required in EM 385-1 Section 5B or local standards if more restrictive.

(b) *Safety and Health Requirements.* The contractor and all subcontractors shall comply with the latest edition of the U.S. Army Corps of Engineers Safety and Health manual EM 385-1-1, or OSHA 29 CFR parts 1910 or 1926 if no EM 385-1-1 requirements are applicable, and the accepted contractor's written safety program.

(c) *Mishap Reporting.* The contractor is required to report **immediately** all mishaps to the COR and the contracting officer. A "mishap" is any event causing injury, disease or illness, death, material loss or property damage, or incident causing environmental contamination. The mishap reporting requirement shall include fires, explosions, hazardous materials contamination, and other similar incidents that may threaten people, property, and equipment.

(d) *Records.* The contractor shall maintain an accurate record on all mishaps incident to work performed under this contract resulting in death, traumatic injury, occupational disease, or damage to or theft of property, materials, supplies, or equipment. The contractor shall report this data in the manner prescribed by the contracting officer.

(e) *Subcontracts.* The contractor shall insert this clause, including this paragraph (e), with appropriate changes in the designation of the parties, in subcontracts.

(f) *Written program.* The plan required by paragraph (f)(1) of the clause entitled “Accident Prevention Alternate I” shall be known as the Site Safety and Health Plan (SSHP) and shall address any activities listed in paragraph (a) of this clause, or as otherwise required by the contracting officer/COR.

(1) The SSHP shall be submitted at least 10 working days prior to commencing any activity at the site.

(2) The plan must address developing activity hazard analyses (AHAs) for specific tasks. The AHAs shall define the activities being performed and identify the work sequences, the specific anticipated hazards, site conditions, equipment, materials, and the control measures to be implemented to eliminate or reduce each hazard to an acceptable level of risk. Work shall not begin until the AHA for the work activity has been accepted by the COR and discussed with all engaged in the activity, including the Contractor, subcontractor(s), and Government on-site representatives.

(3) The names of the Competent/Qualified Person(s) required for a particular activity (for example, excavations, scaffolding, fall protection, other activities as specified by EM 385-1-1) shall be identified and included in the AHA. Proof of their competency/qualification shall be submitted to the contracting officer or COR for acceptance prior to the start of that work activity. The AHA shall be reviewed and modified as necessary to address changing site conditions, operations, or change of competent/qualified person(s).

(End of clause)

652.237-72 Observance of Legal Holidays and Administrative Leave (FEB 2015)

(a) The Department of State observes the following days as holidays:

New Year’s Day
Martin Luther King’s Birthday
Washington’s Birthday
Memorial Day
Independence Day
Labor Day
Juneteenth Day
Columbus Day
Veterans Day
Thanksgiving Day
Christmas Day

Any other day designated by Federal law, Executive Order, or Presidential Proclamation.

LOCAL HOLIDAYS:

Carnival
Good Friday
Labor Day
Battle of Pichincha
Independence Day (Ecuador)
All Souls’ days
Cuenca Independence day
Founding of Quito

(b) When New Year's Day, Independence Day, Veterans Day or Christmas Day falls on a Sunday, the following Monday is observed; if it falls on Saturday the preceding Friday is observed. Observance of such days by Government personnel shall not be cause for additional period of performance or entitlement to compensation except as set forth in the contract. If the contractor's personnel work on a holiday, no form of holiday or other premium compensation will be reimbursed either as a direct or indirect cost, unless authorized pursuant to an overtime clause elsewhere in this contract.

(c) When the Department of State grants administrative leave to its Government employees, assigned contractor personnel in Government facilities shall also be dismissed. However, the contractor agrees to continue to provide sufficient personnel to perform round-the-clock requirements of critical tasks already in operation or scheduled and shall be guided by the instructions issued by the contracting officer or his/her duly authorized representative.

(d) For firm-fixed-price contracts, if services are not required or provided because the building is closed due to inclement weather, unanticipated holidays declared by the President, failure of Congress to appropriate funds, or similar reasons, deductions will be computed as follows:

(1) The deduction rate in dollars per day will be equal to the per month contract price divided by 21 days per month.

(2) The deduction rate in dollars per day will be multiplied by the number of days services are not required or provided.

If services are provided for portions of days, appropriate adjustment will be made by the contracting officer to ensure that the contractor is compensated for services provided.

(e) If administrative leave is granted to contractor personnel as a result of conditions stipulated in any "Excusable Delays" clause of this contract, it will be without loss to the contractor. The cost of salaries and wages to the contractor for the period of any such excused absence shall be a reimbursable item of direct cost hereunder for employees whose regular time is normally charged, and a reimbursable item of indirect cost for employees whose time is normally charged indirectly in accordance with the contractors accounting policy.
(End of clause)

652.242-70 CONTRACTING OFFICER'S REPRESENTATIVE (COR) (AUG 1999)

(a) The Contracting Officer may designate in writing one or more Government employees, by name or position title, to take action for the Contracting Officer under this contract. Each designee shall be identified as a Contracting Officer's Representative (COR). Such designation(s) shall specify the scope and limitations of the authority so delegated; provided, that the designee shall not change the terms or conditions of the contract, unless the COR is a warranted Contracting Officer, and this authority is delegated in the designation.

(b) The COR for this contract is the Facilities Engineer

652.242-73 AUTHORIZATION AND PERFORMANCE (AUG 1999)

(a) The Contractor warrants the following:

(1) That it has obtained authorization to operate and do business in the country or countries in which this contract will be performed.

(2) That it has obtained all necessary licenses and permits required to perform this contract; and,

(3) That it shall comply fully with all laws, decrees, labor standards, and regulations of said country or countries during the performance of this contract.

(b) If the party actually performing the work will be a subcontractor or joint venture partner, then such subcontractor or joint venture partner agrees to the requirements of paragraph (a) of this clause.

(End of clause)

652.243-70 NOTICES (AUG 1999)

Any notice or request relating to this contract given by either party to the other shall be in writing. Said notice or request shall be mailed or delivered by hand to the other party at the address provided in the schedule of the contract. All modifications to the contract must be made in writing by the Contracting Officer.

SECTION 3 – SOLICITATION PROVISIONS

52.212-1 INSTRUCTIONS TO OFFERORS -- COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (MAR 2023) IS INCORPORATED BY REFERENCE (SEE SF-1449, BLOCK 27A)

ADDENDUM TO 52.212-1

Summary of instructions. Proposals that are not in compliance with the solicitation instructions and requirements shall be deemed uncompliant and labeled as failure to follow instructions and no further consideration will be given. Each offer must consist of the following:

A.1. A completed solicitation, in which the SF-1449 cover page (Blocks 12, 17, 19-24, and 30 as appropriate), and Section 1 has been filled out.

The Offeror shall include Defense Base Act (DBA) insurance premium costs covering employees. The offeror may obtain DBA insurance directly from any Department of Labor approved providers at the DOL website at

<http://www.dol.gov/owcp/dlhwc/lscarrier.htm>

Proposals must be in English and incomplete proposals will not be accepted. Your proposal must be submitted electronically to quitocontracts@state.gov. It is important to make sure the submission is made in specific size and format; in MS-Word 2007/2010 or MS-Excel 2007/2010 or Adobe Acrobat (pdf) file format. The file size must not exceed 25MB. If the file size should exceed 25MB, the submission must be made in separate files and attached to separate emails with less than 25MB each. **Please submit technical proposal and pricing, separately to quitocontracts@state.gov. Failure to that may deem the offeror's proposal to be considered non-responsive and no further consideration will be given.**

A.2. Technical Proposal. The technical proposal demonstrating the offeror's ability to perform must include the following:

(1) Evidence that the offeror operates an established business with a permanent address and telephone listing in Ecuador.

(2) Evidence that the offeror meets all local insurance requirements. Have the ability to obtain or to post adequate performance security, such as bonds, irrevocable letters of credit or guarantees issued by a reputable financial institution (Certification of a Financial Institution or Insurance Company that will issue any guarantee/insurance policy, as required.)

(3) A list with the names, addresses and telephone numbers of the owners, partners, and principal officers of the Offeror.

(4) The name and address of the Supervisor/Project Manager (or another liaison to the Embassy/Consulate) who understands written and spoken English.

(5) A list of the names, addresses, and telephone numbers of subcontractors and principal materials suppliers to be used on the project, indicating what portions of the work will be performed by them.

(6) The offeror shall provide proof of SAM registration to include the SAM UEI number.

(7) List of clients over the past five years, demonstrating prior experience with relevant past performance information and references (provide dates of contracts, places of performance, value of contracts, contact names, telephone and fax numbers and email addresses). If the offeror has not performed comparable services in Ecuador, then the offeror shall provide its international experience. Offerors are advised that the past performance information requested above may be discussed with the client's contact person. In addition, the client's contact person may be asked to comment on the offeror's:

- (a) Quality of services provided under the contract.
- (b) Compliance with contract terms and conditions.
- (c) Effectiveness of management.
- (d) Willingness to cooperate with and assist the customer in routine matters, and when confronted by unexpected difficulties.
- (e) Business integrity / business conduct.

The Government will use past performance information primarily to assess an offeror's capability to meet the solicitation performance requirements, including the relevance and successful performance of the offeror's work experience. The Government may also use this data to evaluate the credibility of the offeror's proposal. In addition, the Contracting Officer may use past performance information in making a determination of responsibility.

(8) Evidence that the offeror can provide the necessary personnel, equipment, and financial resources needed to perform the work.

(9) Have no adverse criminal record.

(10) Contractor Quality Control and Management Plan for ensuring an acceptable quality level of service including but not limited to contract administration and oversight as it relates to quality of service under contract; and':

- (a) Organization chart including site specific staffing proposal.
- (b) A work plan and schedule considering all work elements in Section 1, Performance Work Statement and specific paragraph 1.3 with the correspondent periodicity.
- (c) Identify types and quantities of equipment, supplies and materials required for performance of services under this contract. Identify if the offeror already possesses the listed items and their condition for suitability and if not already possessed or inadequate for use how and when the items will be obtained.
- (d) Quality Control Plan including but not limited to contract administration and oversight; QC plan must include good cleaning practices. e.g. cleaning rag color codes for kitchenettes, bathrooms, desks, etc.
- (e) (1) A copy of the Certificate of Insurance(s), **or** (2) a statement that the Contractor will get the required insurance, and the name of the insurance provider to be used.

(11) General company Safety plan. Including evidence of contractor experience and/or capabilities of compliance to contract safety code: OSHA and the EM 385-1-1. e.g. sample of an Activity Hazard Analysis (AHA) as required under EM 385-1-1 (1.6).

ADDENDUM TO SOLICITATION PROVISIONS
FAR AND DOSAR PROVISIONS NOT PRESCRIBED IN PART 12

52.252-1 SOLICITATION PROVISIONS INCORPORATED BY REFERENCE (FEB 1998)

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. In addition, the full text of a clause may be accessed electronically at Acquisition.gov this address is subject to change.

If the Federal Acquisition Regulation (FAR) is not available at the location indicated above, use the Department of State Acquisition website at e-CFR to see the links to the FAR. You may also use an Internet “search engine” (for example, Google, Yahoo or Excite) to obtain the latest location of the most current FAR.

THE FOLLOWING FEDERAL ACQUISITION REGULATION SOLICITATION
PROVISIONS ARE INCORPORATED BY REFERENCE:

<u>PROVISION</u>	<u>TITLE AND DATE</u>
52.204-7	SYSTEM FOR AWARD MANAGEMENT (OCT 2018)
52.204-16	COMMERCIAL AND GOVERNMENT ENTITY CODE REPORTING (AUG 2020)
52.209-7	INFORMATION REGARDING RESPONSIBILITY MATTERS (OCT 2018)
52.211-1	AVAILABILITY OF SPECIFICATIONS LISTED IN THE GSA INDEX OF FEDERAL SPECIFICATIONS, STANDARDS AND COMMERCIAL ITEM DESCRIPTIONS, FPMR PART 101-29 (SEP 2023)
52.212-1	INSTRUCTIONS TO OFFERORS -- COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (SEP 2023)
52.214-34	SUBMISSION OF OFFERS IN THE ENGLISH LANGUAGE (APR 1991)
52.222-56	CERTIFICATION REGARDING TRAFFICKING IN PERSONS (OCT 2020)
52.237-1	SITE VISIT (APR 1984)

Offerors are urged and expected to inspect the site where services are to be performed and to satisfy themselves regarding all general and local conditions that may affect the cost of contract performance, to the extent that the information is reasonably obtainable. In no event shall failure to inspect the site constitute grounds for a claim after contract award.

The site visit will be held on May 6, 2026 at the Embassy of the United States of America in Quito, Ecuador, at 10:00 am located at Av. Guayacanes N52-205y Av. Avigiras Prospective offerors should contact QuitoContracts@state.gov for additional information or to arrange entry to the building.

THE FOLLOWING DOSAR PROVISION(S) IS/ARE PROVIDED IN FULL TEXT:

652.206-70 ADVOCATE FOR COMPETITION/OMBUDSMAN (FEB 2015)

(a) The Department of State's Advocate for Competition is responsible for assisting industry in removing restrictive requirements from Department of State solicitations and removing barriers to full and open competition and use of commercial items. If such a solicitation is considered competitively restrictive or does not appear properly conducive to competition and commercial practices, potential offerors are encouraged first to contact the contracting office for the solicitation. If concerns remain unresolved, contact:

(1) For solicitations issued by the Office of Acquisition Management (A/LM/AQM) or a Regional Procurement Support Office, the A/LM/AQM Advocate for Competition, at AQMCompetitionAdvocate@state.gov.

(2) For all others, the Department of State Advocate for Competition at cat@state.gov.

(b) The Department of State's Acquisition Ombudsman has been appointed to hear concerns from potential offerors and contractors during the pre-award and post-award phases of this acquisition. The role of the ombudsman is not to diminish the authority of the contracting officer, the Technical Evaluation Panel or Source Evaluation Board, or the selection official. The purpose of the ombudsman is to facilitate the communication of concerns, issues, disagreements, and recommendations of interested parties to the appropriate Government personnel, and work to resolve them. When requested and appropriate, the ombudsman will maintain strict confidentiality as to the source of the concern. The ombudsman does not participate in the evaluation of proposals, the source selection process, or the adjudication of formal contract disputes. Interested parties are invited to contact the contracting activity ombudsman, [insert name], at [insert telephone and fax numbers]. For an American Embassy or overseas post, refer to the numbers below for the Department Acquisition Ombudsman. Concerns, issues, disagreements, and recommendations which cannot be resolved at a contracting activity level may be referred to the Department of State Acquisition Ombudsman at (703) 516-1696 or write to: Department of State, Acquisition Ombudsman, Office of the Procurement Executive (A/OPE), Suite 1060, SA-15, Washington, DC 20520.

(End of provision)

SECTION 4 – EVALUATION FACTORS

This is a FAR Part 12 and Part 15 acquisition. The Government intends to award a contract resulting from this solicitation to the lowest priced, technically acceptable offeror who is a responsible contractor. The evaluation process shall include the following:

1. Compliance Review. The Government will perform an initial review of proposals received to determine compliance with the terms of the solicitation. The Government shall reject as

unacceptable proposals which do not conform to the solicitation instructions and requirements.

2. **Technical Acceptability.** Technical acceptability will include a review of past performance and experience, and other criteria as defined in Section 3, along with any technical information provided by the offeror with its proposal.
3. **Price Evaluation.** The lowest price will be determined by multiplying the offered prices times the estimated quantities in “Prices – Continuation of SF-1449, Block 23”, and arriving at a grand total, including all options. The Government reserves the right to reject proposals that are unreasonably low or high in price.
4. **Responsibility Determination.** The Government will determine contractor responsibility by analyzing whether the apparent successful offeror complies with the requirements of FAR Subpart 9.1, including:
 - Companies must be registered in Ecuador and provide evidence of a stablished business with licenses and permits that allows them to work in Ecuador at the time of submission of the proposal to accomplish Ecuadorian law
 - Adequate financial resources or the ability to obtain them;
 - Ability to comply with the required performance period, taking into consideration all existing commercial and governmental business commitments;
 - Satisfactory record of integrity and business ethics;
 - Necessary organization, experience, and skills or the ability to obtain them;
 - Necessary equipment and facilities or the ability to obtain them; and
 - Be otherwise qualified and eligible to receive an award under applicable laws and regulations.

ADDENDUM TO EVALUATION FACTORS
FAR AND DOSAR PROVISION(S) NOT PRESCRIBED IN PART 12

The following FAR provision(s) is/are provided in full text:

52.217-5 EVALUATION OF OPTIONS (JUL 1990)

Except when it is determined in accordance with FAR [17.206\(b\)](#) not to be in the Government's best interests, the Government will evaluate offers for award purposes by adding the total price for all options to the total price for the basic requirement. Evaluation of options will not obligate the Government to exercise the option(s).

Evaluation of FAR 52.217-8 prices is for evaluation purposes only. Prices in this 6-month term of performance will be included in the total cost of performance (BASE YEAR plus all OPTIONS PERIODS INCLUDE 6-MONTHS) however, it will not be included in the contract award amount.'

(End of clause)

52.225-17 EVALUATION OF FOREIGN CURRENCY OFFERS (FEB 2000)

If the Government receives offers in more than one currency, the Government will evaluate offers by converting the foreign currency to United States currency using the exchange rate used by the Embassy in effect as follows:

(a) For acquisitions conducted using sealed bidding procedures, on the date of bid opening.

(b) For acquisitions conducted using negotiation procedures—

- (1) On the date specified for receipt of offers, if award is based on initial offers; otherwise
- (2) On the date specified for receipt of proposal revisions.

(End of clause)

SECTION 5 - REPRESENTATIONS AND CERTIFICATIONS

52.240-90 Security Prohibitions and Exclusions Representations and Certifications (OCT 2025).

As prescribed in 40.205(a), insert the following provision:

Security Prohibitions and Exclusions Representations and Certifications (Deviation Date)

(a) *Definitions.* As used in this provision—

Backhaul, covered article, covered telecommunications equipment or services, critical technology, FASCSA order, Intelligence community, interconnection arrangements, national security system, roaming, sensitive compartmented information, sensitive compartmented information system, source, and substantial or essential component have the meanings provided in the clause 52.240-91, Security Prohibitions and Exclusions.

Business operations means engaging in commerce in any form, including by acquiring, developing, maintaining, owning, selling, possessing, leasing, or operating equipment, facilities, personnel, products, services, personal property, real property, or any other apparatus of business or commerce.

Marginalized populations of Sudan means—

(1) Adversely affected groups in regions authorized to receive assistance under section 8(c) of the Darfur Peace and Accountability Act (Pub. L. 109-344) (50 U.S.C. 1701 note); and

(2) Marginalized areas in Northern Sudan described in section 4(9) of such Act.

Restricted business operations means business operations in Sudan that include power production activities, mineral extraction activities, oil-related activities, or the production of military equipment, as those terms are defined in the Sudan Accountability and Divestment Act of 2007 (Pub. L. 110-174). Restricted business operations do not include business operations that the person (as that term is defined in Section 2 of the Sudan Accountability and Divestment Act of 2007) conducting the business can demonstrate—

(1) Are conducted under contract directly and exclusively with the regional government of southern Sudan;

(2) Are conducted under specific authorization from the Office of Foreign Assets Control in the Department of the Treasury, or are expressly exempted under Federal law from the requirement to be conducted under such authorization;

(3) Consist of providing goods or services to marginalized populations of Sudan;

(4) Consist of providing goods or services to an internationally recognized peacekeeping force or humanitarian organization;

(5) Consist of providing goods or services that are used only to promote health or education; or

(6) Have been voluntarily suspended.

Sensitive technology—

(1) Means hardware, software, telecommunications equipment, or any other technology that is to be used specifically—

(i) To restrict the free flow of unbiased information in Iran; or

(ii) To disrupt, monitor, or otherwise restrict speech of the people of Iran; and

(2) Does not include information or informational materials the export of which the President does not have the authority to regulate or prohibit pursuant to section 203(b)(3) of the International Emergency Economic Powers Act (50 U.S.C. 1702(b)(3)).

(b) *Procedures.*

(1) *Covered telecommunications and video surveillance.* The Offeror shall review the list of excluded parties in the System for Award Management (SAM) at <https://www.sam.gov> for entities excluded from receiving federal awards for “covered telecommunications equipment or services.”

(2) *FASCSA Orders.*

(i) The Offeror shall search in SAM for the phrase “FASCSA order” for any covered article, or any products or services produced or provided by a source, if there is an applicable FASCSA order described in paragraph (e) of FAR 52.240-91, Security Prohibitions and Exclusions.

(ii) The Offeror shall review the solicitation for any FASCSA orders that are not in SAM but are effective and apply to the solicitation and resultant contract (see FAR 40.204-1(c)(2)).

(iii) FASCSA orders issued after the date of solicitation do not apply unless added by an amendment to the solicitation.

(c) *Covered telecommunications equipment or services representations.* By submission of its offer, the Offeror represents that, after conducting a reasonable inquiry (that looks at any information in the Offeror's possession but does not need to include an internal or third-party audit)—

(1) It will not provide covered telecommunications equipment or services to the Government in the performance of any contract, subcontract or other contractual instrument resulting from this solicitation, except as waived by the solicitation, or as disclosed in paragraph (g); and

(2) It does not use covered telecommunications equipment or services, or use any equipment, system, or service that uses covered telecommunications equipment or services, except as waived by the solicitation, or as disclosed in paragraph (g).

(d) *FASCSA Representation.* By submission of this offer, the offeror represents that it has conducted a reasonable inquiry, and that the offeror does not propose to provide or use in response to this solicitation any covered article, or any products or services produced or provided by a source, if the covered article or the source is prohibited by an applicable FASCSA order in effect on the date the solicitation was issued, except as waived by the solicitation, or as disclosed in paragraph (g). A reasonable inquiry will look at any information in the offeror's possession but does not need to include an internal or third-party audit.

(e) *Sudan certification.* By submission of its offer, the offeror certifies, after conducting a reasonable inquiry (that looks at any information in the offeror's possession but does not need to include an internal or third-party audit), that the offeror does not conduct any restricted business operations in Sudan.

(f) *Iran Representation and Certifications.*

(1) Except as provided in paragraph (f)(2) of this provision or if a waiver has been granted in accordance with FAR 40.203-3, the offeror, after conducting a reasonable inquiry (that looks at any information in the offeror's possession but does not need to include an internal or third-party audit), by submission of its offer—

(i) Represents, to the best of its knowledge and belief, that the offeror does not export any sensitive technology to the government of Iran or any entities or individuals owned or controlled by, or acting on behalf or at the direction of, the government of Iran;

(ii) Certifies that the offeror, or any person (as defined at section 15 of the Iran Sanctions Act of 1996, Pub. L. 104-172, 50 U.S.C. 1701 note) owned or controlled by the offeror, does not engage in any activities for which sanctions may be imposed under section 5 of the Act. These sanctioned activities are in the areas of development of the petroleum resources of Iran, production of refined petroleum products in Iran, sale and provision of refined petroleum products to Iran, and contributing to Iran's ability to acquire or develop certain weapons or technologies; and

(iii) Certifies that the offeror, and any person owned or controlled by the offeror, does not knowingly engage in any transaction that exceeds \$15,000 with Iran's Revolutionary Guard Corps or any of its officials, agents, or affiliates, the property and interests in property of which are blocked pursuant to the International Emergency Economic Powers Act (50 U.S.C. 1701 et seq.) (see OFAC's Specially Designated Nationals and Blocked Persons List at <https://www.treasury.gov/resource-center/sanctions/SDN-List/Pages/default.aspx>)

(2) Exception for trade agreements. The representation and certification requirements of paragraph (f)(1) of this provision do not apply if—

(i) This solicitation includes a trade agreements notice or certification (e.g., 52.225-6, Trade Agreements Certificate); and

(ii) The offeror has certified that all the offered products to be supplied are designated country end products or designated country construction material.

(iii) The offeror shall email questions concerning sensitive technology to the Department of State at CISADA106@state.gov.

(g) *Disclosure.*

(1) If the Offeror is not able to represent compliance with the prohibitions in paragraphs (c) or (d), then the Offeror shall disclose within 72 hours to the contracting office identified in paragraph (g)(2) the following information for each product or service not compliant:

(i) Contract number and order number, if applicable;

(ii) Identification of whether this disclosure relates to paragraph (c) on covered telecommunication equipment or services, or to paragraph (d) on FASCSA orders;

(iii) A description of the products or services that the Contractor identifies or has reason to suspect is prohibited (include brand; model number, such as the original equipment manufacturer (OEM) number, manufacturer part number, or wholesaler number; and item description, as applicable);

(iv) The entity that produced the product or service (include entity name, unique entity identifier, Contractor and Government Entity (CAGE) code, facilities responsible for design, fabrication, assembly, packaging, and test of the product, and whether the entity was the OEM or a distributor (provide manufacturer codes and distributor codes used for the product));

(v) Description of the functionality of the product or service and how that functionality impacts the risk to the product or service;

(vi) An explanation of any factors relevant to determining if the product or service should be permitted by an applicable exception, exemption, or waiver (if the offeror would like the Government to consider a waiver);

(vii) Whether alternative products or services are available that would be compliant with the prohibition;

(viii) If the product or service is related to item maintenance, include the following information on the item being maintained:

(A) Brand;

(B) Model number, OEM number, manufacturer part number, or wholesaler number; and

(C) Item description, as applicable.

(ix) Any readily available information about mitigation actions undertaken or recommended.

(2) If a disclosure is required to be submitted to a contracting office, the offeror shall submit the disclosure as follows:

(i) If a Department of Defense contracting office, the offeror shall submit the disclosure to the website at <https://dibnet.dod.mil>.

(ii) For all other contracting offices, the Offeror shall submit the disclosure to the Contracting Officer.

(3) If the disclosure provided does not contain any of the information required by paragraph (1), and the Offeror later discovers new information that is required by paragraph (1), then the Offeror shall submit a subsequent disclosure within 72 hours of discovering the new information.

(h) *Executive agency review of disclosures.* The Contracting Officer will review disclosures provided in paragraph (g) to determine if any applicable waiver may be sought. The Contracting Officer may choose not to pursue a waiver and may instead make an award to an Offeror that does not require a waiver.

(End of provision)

52.240-91 Security Prohibitions and Exclusions (OCT 2025).

As prescribed in 40.205(b), insert the following clause:

Security Prohibitions and Exclusions (Deviation Date)

(a) *Definitions.* As used in this clause—

American Security Drone Act-covered foreign entity means an entity included on a list that the Federal Acquisition Security Council (FASC) develops and maintains and publishes in the System for Award Management (SAM) at <https://www.sam.gov> (section 1822 of Pub. L. 118-31, 41 U.S.C. 3901 note prec.).

Backhaul means intermediate links between the core network, or backbone network, and the small subnetworks at the edge of the network (e.g., connecting cell phones/towers to the core telephone network). Backhaul can be wireless (e.g., microwave) or wired (e.g., fiber optic, coaxial cable, Ethernet).

Covered application means the social networking service TikTok or any successor application or service developed or provided by ByteDance Limited or an entity owned by ByteDance Limited.

Covered article, as defined in 41 U.S.C. 4713(k), means:

- (1) Information technology, as defined in 40 U.S.C. 11101, including cloud computing services of all types;
- (2) Telecommunications equipment or telecommunications service, as those terms are defined in section 3 of the Communications Act of 1934 (47 U.S.C. 153);
- (3) The processing of information on a Federal or non-Federal information system, subject to the requirements of the Controlled Unclassified Information program (see 32 CFR part 2002); or

(4) Hardware, systems, devices, software, or services that include embedded or incidental information technology.

Covered foreign country means The People's Republic of China.

Covered telecommunications equipment or services means—

(1) Telecommunications equipment produced by Huawei Technologies Company or ZTE Corporation (or any subsidiary or affiliate of such entities);

(2) For the purpose of public safety, security of Government facilities, physical security surveillance of critical infrastructure, and other national security purposes, video surveillance and telecommunications equipment produced by Hytera Communications Corporation, Hangzhou Hikvision Digital Technology Company, or Dahua Technology Company (or any subsidiary or affiliate of such entities);

(3) Telecommunications or video surveillance services provided by such entities or using such equipment; or

(4) Telecommunications or video surveillance equipment or services produced or provided by an entity that the Secretary of Defense, in consultation with the Director of National Intelligence or the Director of the Federal Bureau of Investigation, reasonably believes to be an entity owned or controlled by, or otherwise connected to, the government of a covered foreign country.

Critical technology means—

(1) Defense articles or defense services included on the United States Munitions List set forth in the International Traffic in Arms Regulations under subchapter M of chapter I of title 22, Code of Federal Regulations;

(2) Items included on the Commerce Control List set forth in Supplement No. 1 to part 774 of the Export Administration Regulations under subchapter C of chapter VII of title 15, Code of Federal Regulations, and controlled—

(i) Pursuant to multilateral regimes, including for reasons relating to national security, chemical and biological weapons proliferation, nuclear nonproliferation, or missile technology; or

- (ii) For reasons relating to regional stability or surreptitious listening;
- (3) Specially designed and prepared nuclear equipment, parts and components, materials, software, and technology covered by part 810 of title 10, Code of Federal Regulations (relating to assistance to foreign atomic energy activities);
- (4) Nuclear facilities, equipment, and material covered by part 110 of title 10, Code of Federal Regulations (relating to export and import of nuclear equipment and material);
- (5) Select agents and toxins covered by part 331 of title 7, Code of Federal Regulations, part 121 of title 9 of such Code, or part 73 of title 42 of such Code; or
- (6) Emerging and foundational technologies controlled pursuant to section 1758 of the Export Control Reform Act of 2018 (50 U.S.C. 4817).

FASC-prohibited unmanned aircraft system means an unmanned aircraft system manufactured or assembled by an American Security Drone Act—covered foreign entity.

FASCSA order means any of the following orders issued under the Federal Acquisition Supply Chain Security Act (FASCSA) requiring removing covered articles from executive agency information systems or excluding one or more named sources or named covered articles from executive agency procurement actions, as described in 41 CFR 201-1.303(d) and (e):

- (1) The Secretary of Homeland Security may issue FASCSA orders that apply to civilian agencies, to the extent not covered by paragraph (2) or (3) of this definition. This type of FASCSA order may be referred to as a Department of Homeland Security (DHS) FASCSA order.
- (2) The Secretary of Defense may issue FASCSA orders that apply to the Department of Defense (DoD) and national security systems other than sensitive compartmented information systems. This type of FASCSA order may be referred to as a DoD FASCSA order.
- (3) The Director of National Intelligence (DNI) may issue FASCSA orders that apply to the intelligence community and sensitive compartmented information systems, to the extent not covered by paragraph (2) of this definition. This type of FASCSA order may be referred to as a DNI FASCSA order.

Information technology, as defined in 40 U.S.C. 11101(6)—

(1) Means any equipment or interconnected system or subsystem of equipment, used in the automatic acquisition, storage, analysis, evaluation, manipulation, management, movement, control, display, switching, interchange, transmission, or reception of data or information by the executive agency, if the equipment is used by the executive agency directly or is used by a contractor under a contract with the executive agency that requires the use—

(i) Of that equipment; or

(ii) Of that equipment to a significant extent in the performance of a service or the furnishing of a product;

(2) Includes computers, ancillary equipment (including imaging peripherals, input, output, and storage devices necessary for security and surveillance), peripheral equipment designed to be controlled by the central processing unit of a computer, software, firmware and similar procedures, services (including support services), and related resources; but

(3) Does not include any equipment acquired by a Federal contractor incidental to a Federal contract.

Intelligence community, as defined by 50 U.S.C. 3003(4), means the following—

(1) The Office of the Director of National Intelligence;

(2) The Central Intelligence Agency;

(3) The National Security Agency;

(4) The Defense Intelligence Agency;

(5) The National Geospatial-Intelligence Agency;

(6) The National Reconnaissance Office;

(7) Other offices within the Department of Defense for the collection of specialized national intelligence through reconnaissance programs;

(8) The intelligence elements of the Army, the Navy, the Air Force, the Marine Corps, the Coast Guard, the Federal Bureau of Investigation, the Drug Enforcement Administration, and the Department of Energy;

(9) The Bureau of Intelligence and Research of the Department of State;

(10) The Office of Intelligence and Analysis of the Department of the Treasury;

(11) The Office of Intelligence and Analysis of the Department of Homeland Security; or

(12) Such other elements of any department or agency as may be designated by the President, or designated jointly by the Director of National Intelligence and the head of the department or agency concerned, as an element of the intelligence community.

Interconnection arrangements means arrangements governing the physical connection of two or more networks to allow the use of another's network to hand off traffic where it is ultimately delivered (e.g., connecting a customer of telephone provider A to a customer of telephone company B) or sharing data and other information resources.

Kaspersky Lab-covered article means any hardware, software, or service that—

(1) Is developed or provided by a Kaspersky Lab-covered entity;

(2) Includes any hardware, software, or service developed or provided in whole or in part by a Kaspersky Lab-covered entity; or

(3) Contains components using any hardware or software developed in whole or in part by a Kaspersky Lab-covered entity.

Kaspersky Lab-covered entity means—

(1) Kaspersky Lab;

(2) Any successor entity to Kaspersky Lab, including any change in name, e.g., “Kaspersky”;

(3) Any entity that controls, is controlled by, or is under common control with Kaspersky Lab; or

(4) Any entity of which Kaspersky Lab has a majority ownership.

National security system, as defined in 44 U.S.C. 3552, means any information system (including any telecommunications system) used or operated by an agency or by a contractor of an agency, or other organization on behalf of an agency—

(1) The function, operation, or use of which involves intelligence activities; involves cryptologic activities related to national security; involves command and control of military forces; involves equipment that is an integral part of a weapon or weapons system; or is critical to the direct fulfillment of military or intelligence missions, but does not include a system that is to be used for routine administrative and business applications (including payroll, finance, logistics, and personnel management applications); or

(2) Is protected at all times by procedures established for information that have been specifically authorized under criteria established by an Executive order or an Act of Congress to be kept classified in the interest of national defense or foreign policy.

Roaming means cellular communications services (e.g., voice, video, data) received from a visited network when unable to connect to the facilities of the home network either because signal coverage is too weak or because traffic is too high.

Sensitive compartmented information means classified information concerning or derived from intelligence sources, methods, or analytical processes, which is required to be handled within formal access control systems established by the Director of National Intelligence.

Sensitive compartmented information system means a national security system authorized to process or store sensitive compartmented information.

Source means a non-Federal supplier, or potential supplier, of products or services, at any tier.

Subsidiary means an entity in which more than 50 percent of the entity is owned directly by a parent corporation or through another subsidiary of a parent corporation.

Substantial or essential component means any component necessary for the proper function or performance of a piece of equipment, system, or service.

Unmanned aircraft means an aircraft that is operated without the possibility of direct human intervention from within or on the aircraft (49 U.S.C. 44801(11)).

Unmanned aircraft system means an unmanned aircraft and associated elements (including communication links and the components that control the unmanned aircraft) that are required for the operator to operate safely and efficiently in the national airspace system (49 U.S.C. 44801(12)).

(b) *Prohibitions on providing or using specific products or services in performance of contract.* Unless a waiver or exception applies, the Contractor is prohibited from providing any products or services to the Government or using in the performance of the contract any of the following:

(1) A covered application on any information technology owned or managed by the Government, or on any information technology used or provided by the Contractor under this contract, including equipment provided by the Contractor's employees (section 102 of Division R of the Consolidated Appropriations Act, 2023 (Pub. L. 117-328));

(2) A Kaspersky Lab-covered article (Section 1634 of Division A of the National Defense Authorization Act for Fiscal Year 2018 (Pub. L. 115-91));

(3) Covered telecommunications equipment or services used as a substantial or essential component of any system, or as critical technology as part of any system (paragraphs (a)(1)(A) of section 889 of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232)). This does not prohibit contractors from providing—

(i) A service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or

(ii) Telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(c) Prohibition on unmanned aircraft systems manufactured or assembled by American Security Drone Act—covered foreign entities.

(1) Prohibition. The Contractor is prohibited from—

(i) Delivering any FASC-prohibited unmanned aircraft system, which includes unmanned aircraft (i.e., drones) and associated elements (sections 1823 and 1826 of American Security Drone Act of 2023, within the National Defense Authorization Act for Fiscal Year 2024, Pub. L. 118-31, Div. A, Title XVIII, Subtitle B, 41 U.S.C. 3901 note prec.);

(ii) On or after December 22, 2025, operating a FASC-prohibited unmanned aircraft system in the performance of the contract (section 1824 of Pub. L. 118-31); and

(iii) On or after December 22, 2025, using Federal funds to procure or operate a FASC-prohibited unmanned aircraft system (section 1825 of Pub. L. 118-31).

(2) *Procedures.* The Contractor shall search SAM for the FASC-maintained list of American Security Drone Act—covered foreign entities before proposing, or using in performance of the contract, any unmanned aircraft system. Also, the Contractor shall ensure any effort or expenditure associated with a FASC-prohibited unmanned aircraft system is consistent with a corresponding exemption, exception, or waiver determination expressly stated in the contract.

(3) *Exemptions, exceptions, and waivers.* The prohibitions in paragraph (c) of this clause do not apply where the agency has determined an exemption, exception, or waiver applies, and the contract indicates that such a determination has been made. See sections 1823 through 1825 and 1832 of Public Law 118-31 for statutory requirements pertaining to exemptions, exceptions, and waivers.

(d) *Prohibition on using or providing specific products or services or conducting certain transactions regardless of connection to contract.*

(1) *Certain telecommunications and video surveillance equipment, systems, or services.*

(i) Unless an applicable waiver has been issued by the Government, the Contractor cannot use any equipment, systems, or services that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system (paragraph (a)(1)(B) of section 889 of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232)).

(ii) This prohibition applies to using covered telecommunications equipment or services, regardless of whether that use is in performance of work under a Federal contract. This does not prohibit the contractor from using—

(A) A service that connects to the facilities of a third party, such as backhaul, roaming, or interconnection arrangements; or

(B) Telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(2) *Office of Foreign Assets Control Restrictions.*

(i) Except as authorized by the Office of Foreign Assets Control (OFAC) in the Department of the Treasury, the Contractor shall not acquire, for use in the performance of this contract, any supplies or services if any proclamation, Executive order, or statute administered by OFAC, or if OFAC's implementing regulations at 31 CFR chapter V, would prohibit such a transaction by a person subject to the jurisdiction of the United States.

(ii) Except as authorized by OFAC, most transactions involving Cuba, Iran, and Sudan are prohibited, as are most imports from Burma or North Korea, into the United States or its outlying areas.

(A) For lists of entities and individuals subject to economic sanctions, see OFAC's List of Specially Designated Nationals and Blocked Persons at <https://home.treasury.gov/policy-issues/financial-sanctions/specially-designated-nationals-and-blocked-persons-list-sdn-human-readable-lists>.

(B) For more information about these restrictions, as well as updates, see OFAC's regulations at 31 CFR chapter V and at <https://home.treasury.gov/policy-issues/office-of-foreign-assets-control-sanctions-programs-and-information>.

(C) To conduct electronic screens of potential parties to regulated transactions, see the consolidated screening list at <https://www.trade.gov/consolidated-screening-list>, which consolidates multiple export screening lists of the Departments of Commerce, State, and the Treasury.

(3) *Sudan prohibition.* The Contractor is prohibited from conducting any restricted business operations in Sudan in accordance with Accountability and Divestment Act of 2007 (Pub. L. 110-174).

(4) *Iran prohibitions.*

(i) Unless an exception applies according to paragraph (d)(4)(iii) or the Government grants a waiver, the contractor shall not engage in certain activities or transactions relating to Iran (section 6(b)(1)(A) of Iran Sanctions Act (50 U.S.C. 1701 note).

(ii) Unless an exception applies according to paragraph (d)(4)(iii) or the Government grants a waiver, contractor shall not export certain sensitive technology to Iran, as determined by the President, and has an active exclusion in SAM (22 U.S.C. 8515).

(iii) The prohibition in paragraphs (d)(4)(i) and (d)(4)(ii) do not apply if the acquisition is subject to trade agreements and the offeror certifies that all the offered products are designated country end products or designated country construction material (see part 25).

(iv) Unless an exception applies or the Government grants a waiver, contractors are prohibited from knowingly engaging in any significant transaction (i.e., over \$15,000) with Iran's Revolutionary Guard Corps or any of its officials, agents, or affiliates, the property and interests in property of which are blocked according to the International Emergency Economic Powers Act (section 6(b)(1)(B) of Iran Sanctions Act (50 U.S.C. 1701 note)).

(e) Governmentwide exclusion and removal orders.

(1) Unless the Government has issued an applicable waiver, contractors shall not provide or use as part of the performance of the contract any covered article, or any products or services produced or provided by a source, if the covered article or the source is prohibited by an applicable FASCSA order as follows:

(i) For solicitations and contracts awarded by a Department of Defense contracting office, DoD FASCSA orders apply.

(ii) For all other solicitations and contracts, DHS FASCSA orders apply.

(2) The Contractor shall search for the phrase "FASCSA order" in the System for Award Management (SAM) at <https://www.sam.gov> to locate applicable FASCSA orders.

(3) The Government may identify in the solicitation other FASCSA orders that are not in SAM, which are effective and apply to the solicitation and resulting contract.

(4) A FASCSA order issued after the date of solicitation applies to this contract only if added by an amendment to the solicitation or modification to the contract (see FAR 40.204-1(c)).

(f) *Reasonable inquiry.* The contractor shall conduct a reasonable inquiry to determine if there are any prohibited products or services. The inquiry will look at any information in the entity's possession but does not need to include an internal or third-party audit.

(g) *Removal of prohibited products and services.* For Federal Supply Schedules, Governmentwide acquisition contracts, multi-agency contracts or any other procurement instrument intended for use by multiple agencies, upon notification from the Contracting Officer, during the performance of the contract, the Contractor shall promptly make any necessary changes or modifications to remove any product or service produced or provided by a source that this clause prohibits.

(h) General report.

(1) If the Contractor identifies or is notified by any source, (including a subcontractor at any tier), that any product or service provided or used (or to be provided or used) during contract

performance does not comply with any prohibition in this clause, then the Contractor shall report the following information, or as much information is known, in writing to the contracting office as identified in paragraph (h)(2) within 72 hours:

(i) Contract number and order number, if applicable;

(ii) The specific prohibition the product or service is not complying with;

(iii) A description of the products or services that the Contractor identifies or has reason to suspect is prohibited (include brand; model number, such as the original equipment manufacturer (OEM) number, manufacturer part number, or wholesaler number; and item description, as applicable);

(iv) The entity that produced the product or service (include entity name, unique entity identifier, Contractor and Government Entity (CAGE) code, facilities responsible for design, fabrication, assembly, packaging, and test of the product, and whether the entity was the OEM or a distributor (provide manufacturer codes and distributor codes used for the product));

(v) Description of the functionality of the product or service and how that functionality impacts the risk to the product or service;

(vi) An explanation of any factors relevant to determining if the product or service should be permitted by an applicable exception, exemption, or waiver (if the contractor would like the Government to consider a waiver, and asks for such a waiver);

(vii) Whether alternative products or services are available that would comply with the prohibition;

(viii) If the product or service is related to item maintenance, include the following information on the item being maintained:

(A) Brand;

(B) Model number, OEM number, manufacturer part number, or wholesaler number; and

(C) Item description, as applicable.

(ix) Any readily available information about mitigation actions implemented or recommended.

(2) If a report must be submitted to a contracting office, the Contractor shall submit the report as follows:

(i) If a Department of Defense contracting office, the Contractor shall report to the website at <https://dibnet.dod.mil>.

(ii) For all other contracting offices, the Contractor shall report to the Contracting Officer.

(iii) For indefinite delivery contracts, the Contractor shall report to both the contracting office for the indefinite delivery contract and the contracting office for any affected order.

(3) If the report provided does not contain any of the information required by paragraph (h)(1) of this clause, and the contractor later discovers new information that is required by paragraph (h)(1) of this clause, then the contractor shall submit a subsequent report within 72 hours of discovering the new information.

(4) The contractor shall also report the information in paragraph (h)(1) if the contractor wishes to ask for a waiver of the requirements of a new FASCSA order being applied through modification.

(i) *New FASCSA orders report.*

(1) During contract performance, the Contractor shall review SAM at least once every three months, or as advised by the Contracting Officer, to check for covered articles subject to FASCSA order(s), or for products or services produced by a source subject to FASCSA order(s) not currently identified under paragraph (e) of this clause.

(2) If the Contractor identifies a new FASCSA order(s) that could impact their supply chain, then the Contractor shall conduct a reasonable inquiry to identify whether a covered article or product or service produced or provided by a source subject to the FASCSA order(s) was provided to the Government or used during contract performance. The inquiry will look at any information in the entity's possession but does not need to include an internal or third-party audit.

(3) The Contractor shall submit a report to the contracting office identified in paragraph (h)(2) of this clause if the Contractor identifies, including through any notification by a subcontractor at any tier, that a covered article or product or service produced or provided by a source was provided to the Government or used during contract performance and is subject to a FASCSA order(s). For indefinite delivery contracts, the Contractor shall report to both the contracting office for the indefinite delivery contract and the contracting office for any affected order. The Contractor shall report the following information within 72 hours for each covered article or each product or service produced or provided by a source, where the covered article or source is subject to a FASCSA order:

(i) Contract number and order number, if applicable;

(ii) Name of the covered article or source subject to a FASCSA order;

(iii) The specific FASCSA order the product or service does not comply with;

(iv) The elements of (h)(1)(iii) through (ix) of this clause.

(j) Subcontracts. The Contractor shall insert the substance of this clause, including this paragraph (j) but excluding subparagraphs (d)(1) and (i)(1), in all subcontracts and other contractual instruments, including subcontracts for acquiring commercial products or commercial services.

(End of clause)

Alternate I (DATE XXXX). As prescribed in 40.205(b), substitute the following paragraph (e)(1) for paragraph (e)(1) of the basic clause:

(e) *Governmentwide exclusion and removal orders.*

(1) Contractors are prohibited from providing or using as part of the performance of the contract any covered article, or any products or services produced or provided by a source, if the covered article or the source is prohibited by any applicable FASCSA orders identified by the checkbox(es) in this paragraph (e)(1). [*Contracting Officer must select either "yes" or "no" for each of the following types of FASCSA orders:*]

Yes ☐ No ☐ DHS FASCSA Order

Yes ☐ No ☐ DoD FASCSA Order

Yes ☐ No ☐ DNI FASCSA Order

52.246-4 Inspection of Services-Fixed-Price (OCT 2025).

As prescribed in 46.304, insert the following clause:

Inspection of Services-Fixed-Price (Aug 1996)

(a) *Definition.* "Services," as used in this clause, includes services performed, workmanship, and material furnished or utilized in the performance of services.

(b) The Contractor shall provide and maintain an inspection system acceptable to the Government covering the services under this contract. Complete records of all inspection work performed by the Contractor shall be maintained and made available to the Government during contract performance and for as long afterwards as the contract requires.

(c) The Government has the right to inspect and test all services called for by the contract, to the extent practicable at all times and places during the term of the contract. The Government shall perform inspections and tests in a manner that will not unduly delay the work.

(d) If the Government performs inspections or tests on the premises of the Contractor or a subcontractor, the Contractor shall furnish, and shall require subcontractors to furnish, at no increase in contract price, all reasonable facilities and assistance for the safe and convenient performance of these duties.

(e) If any of the services do not conform with contract requirements, the Government may require the Contractor to perform the services again in conformity with contract requirements, at no increase in contract amount. When the defects in services cannot be corrected by reperformance, the Government may-

(1) Require the Contractor to take necessary action to ensure that future performance conforms to contract requirements; and

(2) Reduce the contract price to reflect the reduced value of the services performed.

(f) If the Contractor fails to promptly perform the services again or to take the necessary action to ensure future performance in conformity with contract requirements, the Government may-

(1) By contract or otherwise, perform the services and charge to the Contractor any cost incurred by the Government that is directly related to the performance of such service; or

(2) Terminate the contract for default.

(End of clause)

52.246-5 Inspection of Services-Cost-Reimbursement.

As prescribed in 46.305, insert the following clause in solicitations and contracts for services, or supplies that involve the furnishing of services, when a cost-reimbursement contract is contemplated:

Inspection of Services-Cost-Reimbursement (Apr 1984)

(a) *Definition.* "Services," as used in this clause, includes services performed, workmanship, and material furnished or used in performing services.

(b) The Contractor shall provide and maintain an inspection system acceptable to the Government covering the services under this contract. Complete records of all inspection work performed by the Contractor shall be maintained and made available to the Government during contract performance and for as long afterwards as the contract requires.

(c) The Government has the right to inspect and test all services called for by the contract, to the extent practicable at all places and times during the term of the contract. The Government shall perform inspections and tests in a manner that will not unduly delay the work.

(d) If any of the services performed do not conform with contract requirements, the Government may require the Contractor to perform the services again in conformity with contract requirements, for no additional fee. When the defects in services cannot be corrected by reperformance, the Government may-

(1) Require the Contractor to take necessary action to ensure that future performance conforms to contract requirements; and

(2) Reduce any fee payable under the contract to reflect the reduced value of the services performed.

(e) If the Contractor fails to promptly perform the services again or take the action necessary to ensure future performance in conformity with contract requirements, the Government may-

(1) By contract or otherwise, perform the services and reduce any fee payable by an amount that is equitable under the circumstances; or

(2) Terminate the contract for default.

(End of clause)

(Not applicable if the). (Not applicable if the offeror is required to provide this information to the SAM to be eligible for award.), the TIN provided hereunder, the TIN provided hereunder may be

matched with IRS records to verify the accuracy of the offeror's TIN.

52.229-11 TAX ON CERTAIN FOREIGN PROCUREMENTS-NOTICE AND REPRESENTATION (JUN 2020)

(a) *Definitions.* As used in this provision—

Foreign person means any person other than a United States person.

Specified Federal procurement payment means any payment made pursuant to a contract with a foreign contracting party that is for goods, manufactured or produced, or services provided in a foreign country that is not a party to an international procurement agreement with the United States. For purposes of the prior sentence, a foreign country does not include an outlying area.

United States person as defined in 26 U.S.C. 7701(a)(30) means—

- (1) A citizen or resident of the United States;
- (2) A domestic partnership;
- (3) A domestic corporation;
- (4) Any estate (other than a foreign estate, within the meaning of 26 U.S.C. 701(a)(31)); and
- (5) Any trust if—

(i) A court within the United States is able to exercise primary supervision over the administration of the trust; and

(ii) One or more United States persons have the authority to control all substantial decisions of the trust.

(b) Unless exempted, there is a 2 percent tax of the amount of a specified Federal procurement payment on any foreign person receiving such payment. See 26 U.S.C. 5000C and its implementing regulations at 26 CFR 1.5000C-1 through 1.5000C-7.

(c) Exemptions from withholding under this provision are described at 26 CFR 1.5000C-1(d)(5) through (7). The Offeror would claim an exemption from the withholding by using the Department of the Treasury Internal Revenue Service Form W-14, Certificate of Foreign Contracting Party Receiving Federal Procurement Payments, available via the internet at www.irs.gov/w14. Any exemption claimed and self-certified on the IRS Form W-14 is subject to audit by the IRS. Any disputes regarding the imposition and collection of the 26 U.S.C. 5000C tax are adjudicated by the IRS as the 26 U.S.C. 5000C tax is a tax matter, not a contract issue. The IRS Form W-14 is provided to the acquiring agency rather than to the IRS.

(d) For purposes of withholding under 26 U.S.C. 5000C, the Offeror represents that—

(1) It ☐ is ☐ is not a foreign person; and

(2) If the Offeror indicates “is” in paragraph (d)(1) of this provision, then the Offeror represents that—I am claiming on the IRS Form W-14 ☐ a full exemption, or ☐ partial or no exemption [*Offeror shall select one*] from the excise tax.

(e) If the Offeror represents it is a foreign person in paragraph (d)(1) of this provision, then—

(1) The clause at FAR 52.229-12, Tax on Certain Foreign Procurements, will be included in any resulting contract; and

(2) The Offeror shall submit with its offer the IRS Form W-14. If the IRS Form W-14 is not submitted with the offer, exemptions will not be applied to any resulting contract and the Government will withhold a full 2 percent of each payment.

(f) If the Offeror selects “is” in paragraph (d)(1) and “partial or no exemption” in paragraph (d)(2) of this provision, the Offeror will be subject to withholding in accordance with the clause at FAR 52.229-12, Tax on Certain Foreign Procurements, in any resulting contract.

(g) A taxpayer may, for a fee, seek advice from the Internal Revenue Service (IRS) as to the proper tax treatment of a transaction. This is called a private letter ruling. Also, the IRS may publish a revenue ruling, which is an official interpretation by the IRS of the Internal Revenue Code, related statutes, tax treaties, and regulations. A revenue ruling is the conclusion of the IRS on how the law is applied to a specific set of facts. **For questions relating to the interpretation of the IRS regulations go to <https://www.irs.gov/help/tax-law-questions>.**

(End of provision)

THE FOLLOWING DOSAR PROVISION IS PROVIDED IN FULL TEXT:

652.225-70 ARAB LEAGUE BOYCOTT OF ISRAEL (AUG 1999)

(a) Definitions. As used in this provision:

Foreign person means any person other than a United States person as defined below.

United States person means any United States resident or national (other than an individual resident outside the United States and employed by other than a United States person), any domestic concern (including any permanent domestic establishment of any foreign concern), and any foreign subsidiary or affiliate (including any permanent foreign establishment) of any domestic concern which is controlled in fact by such domestic concern, as provided under the Export Administration Act of 1979, as amended.

(b) Certification. By submitting this offer, the offeror certifies that it is not:

- (1) Taking or knowingly agreeing to take any action, with respect to the boycott of Israel by Arab League countries, which Section 8(a) of the Export Administration Act of 1979, as amended (50 U.S.C. 2407(a)) prohibits a United States person from taking; or,
- (2) Discriminating in the award of subcontracts on the basis of religion.

DOSAR 652.239-804 Unbiased AI Principles for Large Language Models (LLMs) and Minimum Threshold Transparency Provision (DEVIATION) (MAR 2026)

Prescription: Insert the following provision in all solicitations for Artificial Intelligence with LLMs issued on or after March 11, 2026.

(a) **Definitions.** As used in this clause-

Artificial Intelligence (AI): The term "artificial intelligence" has the meaning provided in Section 238(g) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019.

- i. This definition of AI encompasses, but is not limited to, the AI technical subfields of machine learning (including deep learning as well as supervised, unsupervised, and semi-supervised approaches), reinforcement learning, transfer learning, and generative AI.
- ii. This definition of AI does not include robotic process automation or other systems whose behavior is defined only by human-defined rules or that learn solely by repeating an observed practice exactly as it was conducted.
- iii. For this definition, no system should be considered too simple to qualify as covered AI due to a lack of technical complexity (e.g., the smaller number of parameters in a model, the type of model, or the amount of data used for training purposes).
- iv. This definition includes systems that are fully autonomous, partially autonomous, and not autonomous, and it includes systems that operate both with and without human oversight.

Large Language Model (LLM): The term “LLM” means a large language model, which is a generative AI model trained on vast, diverse datasets that enable the model to generate natural-language responses to user prompts.

Unbiased AI Principles. It is the policy of the United States to promote the innovation and use of trustworthy AI. To advance that policy, agency heads must, consistent with applicable law and in consideration of guidance issued by OMB Memorandum M-26-04, procure only those LLMs developed in accordance with the following two principles (Unbiased AI Principles):

- *Truth-seeking:* LLMs must be truthful in responding to user prompts seeking factual information or analysis. LLMs must prioritize historical accuracy, scientific inquiry, and objectivity, and must acknowledge uncertainty where reliable information is incomplete or contradictory.
- *Ideological Neutrality:* LLMs must be neutral, nonpartisan tools that do not manipulate responses in favor of ideological dogmas. Developers must not intentionally encode partisan or ideological judgments into an LLM's outputs unless those judgments are prompted by or otherwise readily accessible to the end user.

(b) This provision applies to any solicitation or order in which the offeror proposes to develop, provide, integrate, resell, deploy, operate, or otherwise make available generative AI capabilities, including LLMs, whether proprietary, open-source, or third-party, and whether directly or indirectly through standalone LLMs or generative AI capabilities integrated in software products or services.

Offerors must provide sufficient documentation to demonstrate transparency regarding the proposed LLM. *At a minimum, Offerors must submit the following as part of their submission:*

Requirement for Compliance. The offeror must ensure that any proposed LLM complies with the Federal Government’s Unbiased AI Principles, as required by OMB Memorandum M-26-04, and with Executive Order 14319, to the extent applicable to the offeror’s role and the proposed solution. The offeror must provide sufficient information to enable the Government to assess whether the proposed LLM aligns with these requirements, consistent with the offeror’s position in the AI software supply chain and its relationship to the original LLM developer.

Information to Support Compliance Determination. To support the Government’s compliance determination, the offeror must submit documentation or descriptions addressing relevant governance, risk management, and technical or operational controls applied at the model, system, and/or application level, as appropriate.

The scope, depth, and form of information required must be proportionate and may vary based on:

1. The offeror’s role as an original LLM developer, reseller, system integrator, platform operator, or other intermediary; and
2. The degree of access the offeror has to information provided by the original LLM developer.

Offerors closer to the original LLM developer are generally expected to have access to, and provide, more comprehensive information than those further downstream in the supply chain.

Third-Party and Intermediary LLM Providers. When the offeror is not the original developer of the LLM, the offeror must, to the extent practicable:

1. Identify the roles of the entities involved in the development, deployment, and distribution of the LLM;
2. Describe the extent of documentation, assurances, or collaboration available from the original LLM developer; and
3. Provide all information reasonably available to the offeror that is relevant to assessing compliance with the Unbiased AI Principles and Executive Order 14319, including disclosure of material limitations on access to model-level or developer-held information.

The Government acknowledges that the availability of information and the ability to implement or influence model-level controls may depend on the willingness of the original LLM developer to cooperate through third-party distributors or integrators. However, sufficient documentation must be provided to establish compliance with the Unbiased AI Principles.

Protection of Proprietary and Sensitive Information. Nothing in this provision must be construed to require the disclosure of sensitive technical data, proprietary information, trade secrets, or intellectual property—such as specific model weights or confidential implementation details—where such disclosure is not otherwise required by law.

Documentation requests are intended to obtain sufficient information to assess risk management

actions, governance practices, and compliance-related controls without compelling unnecessary disclosure of sensitive technical information.

Evaluation and Ongoing Considerations. The Government will evaluate the information provided under this provision solely for purposes of determining alignment with the Unbiased AI Principles, Executive Order 14319, and the suitability of the proposed LLM for the intended use.

(c) Minimum Threshold for Large Language Model (LLM) Transparency.

The Offeror must provide an Acceptable Use Policy, that describes appropriate and prohibited uses of the proposed LLM and explains how the policy applies to the product offering. The Offeror must also provide Model Cards, System Cards, Data Cards, or a combination thereof, as customarily produced for the proposed LLM, summarizing essential information about the model, system, and/or data, including high-level descriptions of training and post-training processes, identified risks and mitigations, known limitations, and available evaluation or benchmark results. The Offeror must further provide end user resources, such as product tutorials, developer guides, or other user documentation, sufficient to support proper use of the LLM and maximize utility for Government users. Finally, the Offeror must identify a mechanism for end user feedback that enables Government users to report outputs that may violate the Unbiased AI Principles, which may include a designated email inbox, product point of contact, or comparable reporting mechanism.

By submission of its offer, the Offeror represents that it complies with the Minimum Transparency Requirements for Large Language Models (LLMs), as set forth in OMB Memorandum M-26-04.

Failure to provide the required transparency materials may render the Offeror ineligible for award. The Government may consider the completeness and clarity of the submitted information in its evaluation of proposals and may require the Contractor to maintain and update these materials throughout the period of performance.

(End of Provision)

DOSAR 652.239-805 Minimum Threshold for Enhanced Large Language Model (LLM) Transparency PROVISION (DEVIATION)(MAR 2026)

Prescription: Insert the following provision into solicitations for the procurement of Artificial Intelligence LLMs that require enhanced transparency measures issued on or after March 11, 2026, if it is determined that additional information is required beyond the minimal LLM threshold to ensure alignment with the Unbiased AI Principals.

(a) **Definitions.** As used in this provision-

Large Language Model (LLM) - The term “LLM” means a large language model, which is a generative AI model trained on vast, diverse datasets that enable the model to generate natural-language responses to user prompts.

(b) ***Minimum Threshold for Enhanced Large Language Model (LLM) Transparency Provision***

The Offeror must provide additional documentation and disclosures directly relevant to enhancing transparency with respect to the Unbiased AI Principles as part of their submission, which may include the following:

The Offeror must describe pre-training and post-training activities that affect the factuality, grounding, and neutrality of LLM outputs, including actions taken to improve accuracy and reliability; the use of system-level prompts that provide natural-language instructions governing model behavior, particularly where information is incomplete, contradictory, or subject to interpretation; categories of outputs restricted through content moderation or safety filters; the use of red teaming or similar methods to continuously assess and mitigate bias; any training or development activities conducted outside the United States, including the type of activity and country involved; and any modifications or configurations implemented to comply with regulations issued by governments other than the U.S. Federal Government.

The Offeror must provide model evaluation information relevant to bias, accuracy, and trustworthiness, including results of bias evaluations conducted by or on behalf of the vendor and a description of the methodologies used (such as testing politically oriented prompt pairs), as well as benchmark scores used by the vendor to measure bias, helpfulness, honesty, or accuracy, including performance on ambiguous versus straightforward questions and, where applicable, across multiple languages.

The Offeror must describe enterprise-level controls available to the Government, including governance tools such as configurable system instructions or content filters that supplement base model behavior; evaluation tools that enable comparison of outputs within a model or across multiple models; and product features that require the model to cite sources or otherwise provide transparency into the provenance of generated outputs.

If the Offeror is not the original developer of the LLM, the Offeror must disclose any third-party modifications or controls applied to the model, including the use of classifiers, system prompts, fine-tuning, content moderation mechanisms, or filtering technologies that affect model outputs.

The Government may consider the completeness, relevance, and clarity of the submitted information in its evaluation of proposals. Failure to provide requested enhanced transparency information may be grounds for exclusion from award. If awarded, the Contractor may be required to maintain and update such information throughout the period of performance.

The obligations in this clause apply to all prime contractors, subcontractors, vendors, and third parties who handle LLMs on behalf of the Contractor and must be flowed down to all relevant subcontracts.

(End of Provision)

DOSAR 652.239-806 LARGE LANGUAGE MODEL (LLM) EXIT AND TRANSITION FOR UNBIASED AI COMPLIANCE CLAUSE (DEVIATION) (MAR 2026)

Prescription: Insert the following clause in solicitations and contracts, regardless of dollar amount for the procurement of Artificial Intelligence LLMs and or supplies and Services that utilize LLMs directly or indirectly.

(a) **Definitions.** As used in this provision-

Large Language Model (LLM) - The term “LLM” means a large language model, which is a generative AI model trained on vast, diverse datasets that enable the model to generate natural-language responses to user prompts.

(b) This clause applies when the Contractor provides, integrates, operates, or otherwise makes available an LLM or implements any material update, upgrade, replacement, or modification to the LLM or related training data, architecture, or hosting environment used in performance of this contract.

(c) **Right to Discontinue Use.** The Government reserves the right to discontinue use of an LLM, in whole or in part, when it is determined that continued use presents unacceptable risk or no longer aligns with the Federal Government’s Unbiased AI Principles as described in OMB Memorandum M-26-04. Any such determination must be made consistent with applicable law and contract terms.

(d) **Notice.** Except in cases requiring immediate action to mitigate significant risk, the Government must provide written notice to the Contractor prior to discontinuing use of the LLM. The notice must describe the basis for the determination and the intended scope of discontinuation.

(e) **Transition and Exit Support.** Upon notice under this clause, the Contractor must provide reasonable and commercially customary transition assistance, including the following, as applicable:

1. Orderly disengagement of the LLM from Government systems or workflows;
2. Return or secure disposition of Government data in accordance with contract requirements; and
3. Documentation necessary to support continuity of operations during the transition period.

Transition assistance must not require disclosure of proprietary information, trade secrets, model weights, or other sensitive technical data, and must be subject to mutually agreed scope, duration, and compensation where applicable.

(f) ***No Waiver of Contractor Rights.*** Nothing in this clause must be construed to:

1. Require the Contractor to modify or disclose proprietary models or intellectual property;
2. Expand the Government's rights beyond those otherwise provided in this contract; or
3. Limit the Contractor's rights under applicable termination, disputes, or intellectual property clauses.

(g) ***Relationship to Other Contract Rights.*** This clause does not replace or supersede any termination for convenience, termination for cause, or other rights otherwise available to the Government under this contract or applicable law. Any exit or transition conducted under this clause must be implemented in a manner consistent with those authorities.

(End of Clause)

ADDENDUM TO SOLICITATION PROVISIONS
FAR AND DOSAR PROVISIONS NOT PRESCRIBED IN PART 12

52.252-1 SOLICITATION PROVISIONS INCORPORATED BY REFERENCE (FEB 1998)

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its proposal or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its proposal or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es):

_____ [Insert one or more Internet addresses]

(End of provision)

THE FOLLOWING FEDERAL ACQUISITION REGULATION SOLICITATION
PROVISIONS ARE INCORPORATED BY REFERENCE:

52.225-25 PROHIBITION ON CONTRACTING WITH ENTITIES ENGAGING IN
CERTAIN ACTIVITIES OR TRANSACTIONS RELATING TO IRAN (JUN
2020)